KEMPSEY Shire Council

Part E – Appendices

Supplementary Information

Glossary, Heritage Requirements, New Areas, Vehicle Parking, Landscape and On-site Sewage and Wastewater Management

PART E – APPENDICES

Application

This section provides supporting information and documentation to support the interpretation and application of the Kempsey DCP.

It is structured as follows:

Appendix 1 – Glossary

Appendix 2– Heritage Requirements Items, Heritage Conservation Areas and Heritage Precincts

Appendix 3 – Development Requirements for New Areas

- West Crescent Head
- Yarrahapinni

Appendix 4 – Schedule of On-Site Vehicle Parking Rates

Appendix 5 – Landscape Information

- Significant Tree Register
- Tree Suitability Schedule

Appendix 6 – On-site Sewage and Wastewater Management

APPENDIX 1 - GLOSSARY

This plan adopts the terms and definitions of the *Kempsey Local Environment Plan,* applicable State Environmental Planning Policies, and the *Environmental Planning and Assessment Act 1979*. Additional terms used in this DCP are defined below. Where there is an inconsistency, the higher order instrument prevails. [**Note:** terms and acronyms may change over time – current 2025]

Table E.1 – Abbreviations/ Acronyms Used in this DCP

AEP	Annual Exceedance Probability
AHD	Australian Height Datum
AHIMS	Aboriginal Heritage Information Management System
AHIP	Aboriginal Heritage Impact Permit
AMCORD	Australian Model Code for Residential Development
ANEF	Australian Noise Exposure Forecast
APZ	Asset Protection Zone
ARI	Annual Recurrence Interval
AS	Australian Standards
AUS-SPECs	Australian Specifications
BASIX	Building Sustainability Index
BCA	Building Code of Australia
BCA 2016	*Biodiversity Conservation Act 2016*
BV	Biodiversity Values
CBD	Central Business District
CC	Construction Certificate
CDC	Complying Development Certificate
CIV	Capital Investment Value
CKPoM	Comprehensive Koala Plan of Management
CMP	Conservation Management Plan
CPTED	Crime Prevention through Environmental Design
DA	Development Application
DBH	Diameter at breast height
DCP	Development Control Plan
DCP	also refers to any Development Control Plan prepared in accordance with the *Environmental Planning and Assessment Act 1979.*
DDA	*Disability Discrimination Act 1992*
DECCW 2010	Due Diligence Code of Practice for the Protection of Aboriginal Objects in New South Wales
DPIRD	Department of Primary Industries and Regional Development
DPHI	NSW Department of Planning, Housing and Infrastructure
DSZ	Deep Soil Zone
EEC	Endangered Ecological Community
EPA	Environment Protection Authority
EP&A	*Environmental Planning and Assessment Act 1979*
EP&A Regulation	*Environmental Planning and Assessment Regulation 2021*
ESD	Ecologically Sustainable Development
ET	Equivalent Tenement
FPL	Flood Planning Level
FSR	Floor Space Ratio

GFA	Gross Floor Area
GPT	Gross Pollutant traps
HBT	Hollow Bearing Tree
HEV	High Environmental Values
HoB	Height of Building
IAL	Important Agricultural Land
IDG	Kempsey Shire Infrastructure Delivery Guide
IWCM	Integrated Water Cycle Management
KSC	Kempsey Shire Council
KLEP	Kempsey Local Environmental Plan 2013
LALC	Local Aboriginal Land Council
Lasc	Landscape
LEP	also refers to any Local Environment Plan prepared in accordance with the *Environmental Planning and Assessment Act 1979*.
LES	Local Environmental Study
LGA	Local Government Area
LGA 1993	*Local Government Act 1993*
LGMS	Local Growth Management Strategy
LLS	Local Land Services
LSPS	Local Strategic Planning Statement
mgmt	Management
MLS	Minimum Lot Size
MNCRS	Mid North Coast Regional Strategy (current version)
MNES	Matters of National Environmental Significance
MUSIC	Model for Urban Stormwater Improvement Conceptualisation
NBN	National Broadband Network
NCRP	North Coast Regional Plan (current version)
NGL	Natural Ground Level
NPW Act	*National Parks and Wildlife Act 1974*
NPW Regulation	*National Parks and Wildlife Regulation 2009*
NPWS	National Parks and Wildlife Service
NSW	New South Wales
OC	Occupation Certificate
OEH	Office of Environment and Heritage – Now (2026) NSW Environment and Heritage
OSMS	On-site Sewage Management Systems
PCT	Kempsey Plant Community Types
PMF	Probable Maximum Flood
PP	Planning Proposal
PBP	Planning for Bushfire Protection
POS	Private open space
RFS	Rural Fire Service
SC	Subdivision Certificate
SEE	Statement of Environmental Effects
SEED	Sharing and Enabling Environmental Data
SEPP	State Environmental Planning Policy

SES	State Emergency Service
SHI	Statement of Heritage Impact
STP	Sewerage Treatment Plant
SWC	Subdivision Works Certificate
SWMP	Soil and Water Management Plan
SWMCP	Stormwater Management Concept Plan
SWMMP	Site Waste Minimisation and Management Plan
TBD	To be determined
TEC	Threatened Ecological Species
TfNSW	Transport for New South Wales
TN	Total Nitrogen
TP	Total Phosphorous
TSS	Total Suspended Solids
UEIA	Urban Expansion Investigation Area
VMP	Vegetation Management Plan
WSAA	Water Services Association of Australia
WSUD	Water Sensitive Urban Design

Table E.2 – Definitions of Terms Used in this DCP

[**Note:** terms, agencies, organisations, references, sources and information may change over time – current 2026]

Term	**Description/ Explanation**	***Reference/Source***
"Aboriginal Cultural Heritage Consultation Requirements for Proponents"	This document is produced by the Office of Environment and Heritage and the purpose of this document is to establish the requirements for consultation with the registered Aboriginal parties as part of the heritage assessment process to determine potential impacts for the proposed activities on Aboriginal cultural heritage and to inform decision making for any application for an Aboriginal Heritage Impact Permit (AHIP).	*See:* ***www.environment.nsw.gov.au***
Aboriginal Culturally Modified Tree	Means a tree that, before or concurrent with (or both) the occupation of the area in which the tree is located by persons of non-Aboriginal extraction, has been scarred, carved or modified by an Aboriginal person by: • The deliberate removal, by traditional methods, of bark or wood from the tree, or • The deliberate modification, by traditional methods of bark or wood of the tree.	
Aboriginal Heritage Impact Permit (AHIP)	Statutory instrument issued by the Office of Environment and Heritage (OEH) under section 90 of the *National Parks and Wildlife Act 1974* (NPW Act) to manage harm or potential harm to Aboriginal objects and places.	*See:* ***www.environment.nsw.gov.au***
Aboriginal Heritage Information Management System (AHIMS)	Aboriginal Heritage Information Management System is a search engine managed by OEH which contains information about Aboriginal objects that are reported to the Director General and registered and also provides information about Aboriginal Places. Please note that this AHIMS list is not exhaustive and further research may be required.	*See:* ***www.environment.nsw.gov.au***
Aboriginal Objects	Means any deposit, object or material evidence (not being a handicraft made for sale) relating to the Aboriginal habitation of an area of New South Wales, being habitation before or concurrent with (or both) the occupation of that area by persons of non-Aboriginal extraction, and includes Aboriginal remains. Examples of Aboriginal Objects include: • Human skeletal remains; • Aboriginal culturally modified tree; • Middens; • Rock art (painting and engravings); • Stone artefacts/tools; • Raised earth rings; • Grinding grooves; • Rock shelters; • Earth mounds; • Hearths; and • Stone arrangements.	*See:* ***www.environment.nsw.gov.au*** *Refer: Appendix 1 of the Due Diligence Code for examples of these objects.*
Aboriginal Places	A statutory term meaning any place declared to be an Aboriginal place (under s.84 of the NPW Act) by the	*See: National Parks and Wildlife Act 1974*

Term	**Description/ Explanation**	***Reference/Source***
	Minister administering the NPW Act, by order published in the Gazette, because the Minister is of the opinion that the place is or was of special significance with respect to Aboriginal culture. It may or may not contain Aboriginal objects.	
Aboriginal place of heritage significance	Means an area of land, the general location of which is identified in an Aboriginal heritage study adopted by the Council after public exhibition and that may be shown on the Heritage Map, that is: (a) The site of one or more Aboriginal objects or a place of that has the physical remains of pre-European occupation by, or is of contemporary significance to, the Aboriginal people. It may (but need not) include items and remnants of the occupation of the land by Aboriginal people, such as burial places, engraving sites, rock art, midden deposits, scarred and sacred trees and sharpening grooves, or (b) A natural Aboriginal sacred site or other sacred feature. It includes natural features such as creeks or mountains of long- standing cultural significance, as well as initiation, ceremonial or story places or areas of more contemporary cultural significance.	*National Parks and Wildlife Act 1974* *Note: The term may include (but is not limited to) places that are declared under section 84 of the National Parks and Wildlife Act 1974 to be Aboriginal places for the purpose of that Act.*
Above awning sign	Means an advertising sign attached to the upper side of an awning (other than the fascia or return end).	
Access handle	A strip of land forming part of a site which has the main function of providing a property access.	
Activity ***(also in relation to Aboriginal Objects and Places)***	Means a project, development, activity or work (this term is used in its ordinary meaning, and does not just refer to an activity as defined in Part 5 of the EPA Act).	*Environmental Planning and Assessment Act 1979* *Kempsey Local Aboriginal Land Council.*
Adaptation	Means modification of an item or place (generally heritage related) to suit a proposed, compatible use.	
Adjacent land or Adjoining Land	Generally means land which abuts the site or is separated from it by a pathway, driveway, roadway or similar thoroughfare.	
Advertisement/ Advertising Signage	Has the same meaning as in the EPA Act. The EPA Act defines an Advertisement as: "...a sign, notice, device or representation in the nature of an advertisement visible from any public place or public reserve or from any navigable water."	*Refer also: SEPP (Industry and Employment) 2021 Chpt 3*
Advertising (for public notification)	Means the placement of public notice on Council's website and, where required, in a newspaper or other publication circulating at least once a week in the locality.	

Term	**Description/ Explanation**	***Reference/Source***
Advertising Display Area	Of an Advertising structure that contains advertising on two or more sides is to be calculated separately for each side and is not the sum of display areas on all sides.	
Advertising structure	Means a structure used or to be used principally for the display of an advertisement.	
Aesthetic Significance	Means an item having this value is significant because it has visual or sensory appeal, landmark qualities and/or creative or technical excellence.	
Alter	In relation to: a) a heritage item means to: • make structural changes to the outside of the heritage item, or • make non-structural changes to the detail, fabric, finish or appearance of the outside of the heritage item, other than changes ensuing from the maintenance of the existing detail, fabric, finish or appearance of the outside of the item. b) a building or work within a heritage conservation area means to: • make structural changes to the outside of the building or work; or • make non-structural changes to the detail, fabric, finish or appearance of the outside of the building or work, not including changes resulting from painting previously painted surfaces, providing the same colour scheme and paint type is used.	
Alternative solution	Means another method which achieves the same Desired Outcome as a Development Control Requirement.	
Amenity	The liveability or quality of a place which makes it pleasant and agreeable to be in for individuals and the community. Amenity includes elements such as sunlight, views, privacy, ambiance and the like.	
Ancillary Buildings/ Structures	Buildings or structures used for a variety of purposes, that support the function of the main or central building/structure. Ancillary buildings are used for a variety of purposes, providing support to essential services or for a central function.	
Annex	Means an attachment to a movable dwelling used as an extension of the liveable area of that dwelling and which is capable of being erected or removed from a site within 24 hours.	
Annual Exceedance Period (AEP)	The probability that a given rainfall total accumulated over a given duration will be exceeded in any one year. Statistical reference used to describe the likelihood of a certain flooding level in and over time. Expressed as a	***www.environment.nsw.gov.au*** *Floodplain-risk-management-manual*

Term	**Description/ Explanation**	***Reference/Source***
	percentage; e.g a 5% AEP flood event would mean the estimated chance of that level of flooding would be 5% in a year, but very likely to occur over a twenty year period.	*Cross reference also (ARI) Average Recurrence Interval*
Application Site	Means the land (specific location) to which an application relates and includes any easement or right of way pertaining to the site.	
Approval	Includes an authority or consent or permission.	
Arborist	Means a suitably qualified specialist in the cultivation and care of trees including tree surgery and the identification and assessment of tree health and condition and prevention of tree diseases.	*Arboriculture Australia - National Industry body for arboriculture.* ***safework.nsw.gov.au***
Archaeological Assessment	Means a study undertaken to establish the archaeological significance (research potential) of a particular site and to propose appropriate management actions.	*Heritage Act 1977* ***environment.nsw.gov*** *Heritage Council of NSW Guidelines*
Archival and Photographic Record	Means measured drawings, written descriptions and photographs sufficient to provide a clear understanding of the heritage significance of a building, work, relic, tree or place and its context.	
Australian Heritage Committee (AHC)	An independent statutory authority which is responsible to the Commonwealth Minister for the Environment. It administers the AHC Act and maintains the Register of the National Estate.	*Australian Heritage Council Act 2003*
Australia ICOMOS	The national committee of the International Council on Monuments and Sites.	***australia.icomos.org***
Australian Standards	Published documents setting out specifications and procedures designed to ensure products, services and systems are safe, reliable and consistently perform the way they were intended to. They establish a common language which defines quality and safety criteria.	
Average Recurrence Interval (ARI)	Means the long-term average number of years between the occurrence of a flood as big as, or larger than, the selected event. For example, floods with a discharge as great as, or greater than, the 20 year ARI flood event will occur on average once every 20 years. ARI is another way of expressing the likelihood of occurrence of a flood event.	***bom.gov.au*** *DCP refers to Standardised term now (AEP) Annual Exceedance Period*
Awning	A predominantly horizontal structure that projects over a footpath from the host building to provide weather protection for pedestrians.	
Awning fascia sign	A sign on the fascia of an awning or verandah.	

Term	**Description/ Explanation**	***Reference/Source***
Balcony	An outdoor, open or partially enclosed area that is either partially integrated into or protrudes entirely from the outer enclosing walls of a building as a means of providing private open space.	
Basement	A space of a building where the floor level of that space is predominantly below ground and where the floor level of the storey immediately above is less than 1-metre above finished ground level.	
BASIX	Introduced as part of the NSW planning system, BASIX (the Building Sustainability Index), is a web based planning tool that measures the potential performance of residential development against sustainability indices, including new residential dwellings and swimming pools or spas with a capacity greater than 40,000 litres.	***planningportal.nsw.gov.au*** *Development & Assessment BASIX*
Battleaxe	Refers to an allotment that relies on an access handle as a means of access to a public street and as such the lot does not have a frontage to the street.	
Bed and breakfast accommodation	As defined in Kempsey LEP 2013.	***legislation.nsw.gov.au***
Bedroom	Means a room which is designated, used, or Council considers is capable of being used or adapted for sleeping in whether or not building alterations are involved or it is the current owner's intention to do so.	
Biodiversity	The variety of living animal and plant life from all sources, including diversity within and between species and diversity of ecosystems. For local specifics, refer to the Kempsey Shire Biodiversity Strategy.	*Biodiversity Conservation Act 2016 No 63 - NSW Legislation* *State Environmental Planning Policy (Biodiversity and Conservation) 2021 - NSW Legislation*
Brownfield Development	Means development on a site that has previously been developed or used for urban purposes, including residential, commercial or industrial land uses.	
Buffer and Buffer zone	Refers to the area surrounding the protected land use, generated using a radial width in metres from the protected land use or associated property. Refer to KSC Sewage Treatment Plant (STP) Buffer Zone Policy.	*KSC Sewage Treatment Plant (STP) Buffer Zone Policy*
Building	Has the same meaning as it has in the Environmental Planning and Assessment Act 1979. "Building" includes part of a building, and also includes any structure or part of a structure (including any	*Environmental Planning and Assessment Act 1979 No 203* *National Construction*

Term	**Description/ Explanation**	***Reference/Source***
	temporary structure or part of a temporary structure), but does not include a manufactured home, moveable dwelling or associated structure within the meaning of the Local Government Act 1993. "Building" can and does mean and refer to a number of different classes (1- 10) of structure, as defined in the National Construction Code (NCC) • E.g - Class 10a Building is a building defined under the National Construction Code as a non-habitable building being a private garage, carport, shed or the like.	*Code (NCC) / Building Code of Australia (BCA)*
Building elevation	The external walls of a building. Also, the graphic representation of the external face(s) of a building.	
Building height (Height of Building – HoB)	Means the vertical distance between the natural ground level at any point to highest point of the building, including plant and lift overruns, but excluding communication devices, antennae, satellite dishes, masts, flagpoles, chimneys, flues and the like. Refer to State Environmental Planning Policy (Housing) 2021Low and Mid-Rise Housing Policy and State Environmental Planning Policy (Exempt and Complying Codes) 2008 for related information. For further detail regarding the determination of the height of a building refer to Kempsey LEP.	*Kempsey Local Environmental Plan 2013*
Building identification sign	Means a sign that identifies or names a building, and that may include the name of a building, the street name and number of a building, the nature of the business and a logo or other symbol that identifies the business, but that does not include general advertising of products, goods or services.	*SEPP (Industry and Employment) 2021 Chpt 3 Advertising and Signage.*
Building line (setback)	Means the horizontal distance between the property boundary or other stated boundary (measured at 90 degrees from the boundary) and: • a building wall, or • the outside face of any balcony, deck or the like, or • the supporting posts of a carport or veranda roof, whichever distance is the shortest. •	
Building wrap advertisement	Means an advertisement used in association with the covering or wrapping of: (a) a building or land, or (b) a building that is under construction, renovation, restoration or demolition, but does not include a wall advertisement.	*SEPP (Industry and Employment) 2021 Chpt 3 Advertising and Signage.*
Burra Charter (and its guidelines)	Adopted by Australia ICOMOS which establishes the nationally accepted principles for the conservation of places of cultural significance.	*Burra Charter 2013 (Adopted 31.10.2013)*

Term	**Description/ Explanation**	***Reference/Source***
Business identification sign	Means a sign: (a) that indicates: • the name of the person or business, and • the nature of the business carried on by the person at the premises or place at which the sign is displayed, and (b) that may include the address of the premises or place and a logo or other symbol that identifies the business, but that does not include any advertising relating to a person who does not carry on business at the premises or place.	*SEPP (Industry and Employment) 2021 Chpt 3 Advertising and Signage.*
Ceiling Height	Is the height from either Finished Floor Level (FFL) or natural ground level to the underside of the ceiling.	
Change of Building Use	Means a change of use of a building from one class of building as identified in the Building Code of Australia to a different class of building.	
Character	Distinctive visual identity of a place, formed by a combination of natural and built elements, land use, history and culture. A concept that defines what makes an element, place or neighbourhood unique and different it from others. Existing character is sometimes used to define and guide the desired future visual appearance of new development, while preserving what is valued by the community.	
Commercial Area	Means an area or place used for commercial purposes whether or not zoned for such purposes.	
Community Facility	means a building or place— (a) owned or controlled by a public authority or non-profit community organisation, and (b) used for the physical, social, cultural or intellectual development or welfare of the community, but does not include an educational establishment, hospital, retail premises, place of public worship or residential accommodation. As defined in KLEP.	*Kempsey Local Environmental Plan 2013*
Compatible Use	Means a use for a heritage item which involves no change to its culturally significant fabric, changes which are substantially reversible or changes which make a minimal impact.	
Compensatory Setback	Means the area of land on which no buildings are erected, or are proposed to be erected, which is in excess of the specified minimum average setback applying to the extent of the geometric centre line.	

Term	**Description/ Explanation**	***Reference/Source***
Conservation (heritage)	Means all the processes of looking after a place so as to retain its cultural significance. It includes maintenance and may according to circumstances include preservation, restoration, reconstruction and adaptation in any one place and will be commonly a combination of more than one of these.	*Refer also: KLEP, Heritage NSW, Heritage Council of NSW* ***environment.nsw.gov.au***
Conservation Management Plan	Means a document prepared in accordance with the provisions of the NSW Heritage Manual. It should establish the heritage significance of the item, place or heritage conservation area and should identify conservation policies and management mechanisms that are appropriate to enable that significance to be retained.	
Conservation Plan	Means a document prepared in accordance with the NSW Heritage Manual to establish the heritage significance of a building, structure, work, relic, tree or place and to identify conservation policies and management mechanisms that are appropriate to enable that significance to be retained.	
Conservation Policy	Means a proposal to conserve a heritage item arising out of the opportunities and constraints presented by the Statement of Heritage Significance and other considerations.	*The Heritage Act 1977*
Construction Certificate	A Construction Certificate (CC) essentially certifies that the detailed construction plans and specifications for the development are consistent with development consent, and comply with the Building Code of Australia (BCA) and other adopted industry standards. This Certificate is required prior to commencing work. Refer also Subdivision Works Certificate (SWC). As above for land subdivision works.	
Country ("Connection to Country")	Country represents the deep connection to land, water and sky which is important for spiritual, cultural, family, and economic wellbeing of Aboriginal communities. Aboriginal people refer to the word Country to describe family origins and associations with parts of Australia. The collective identity of Aboriginal communities is also linked to place. The community itself is part of Country as well as each person in it	*Refer NSW Environment and Heritage definition and explanation*
Council	Means **Kempsey Shire Council**. Reference in this plan to the Council may include Council staff properly exercising authority delegated by the Council.	
Crime Prevention through Environmental Design	(CPTED) is a multi-disciplinary approach to deterring criminal behaviour through environmental design. CPTED principles relate to surveillance, access control, territorial reinforcement and space management aspects of development. CPTED strategies focus on the ability to influence potential offender decisions, in order to deter criminal acts.	*Refer also:* ***police.nsw.gov.au*** *Safety and policing in the community* *Safer by design*

Term	**Description/ Explanation**	***Reference/Source***
Cultural Landscapes	Means those areas of the landscape which have been significantly modified by human activity (Aboriginal, period and contemporary). They include ritual sites, rural lands such as farms, villages and mining sites, as well as country towns.	
Cultural significance (1)	Means aesthetic, historic, scientific, social or spiritual value for past, present or future generations. Cultural significance is embodied in the place itself, its fabric, setting, use associations, meanings, records, related places and related objects. Places may have a range of values for different individuals or groups.	
Cultural Significance (2)	A term frequently used to encompass all aspects of significance, particularly in guidelines documents such as the Burra Charter. Also one of the categories of significance listed in the Heritage Act 1977. (See also Heritage Significance)	
Curtilage (heritage)	The geographical area that provides the physical context for an item, and which contributes to its heritage significance. Land title boundaries and heritage curtilages do not necessarily coincide.	
Dangerous tree	Means a tree that has lost stability or structural integrity to a point that it poses a threat to life that no remedial works can mitigate. Also refers to vegetation that interferes with the safe flight path of aircraft or sight lines for traffic.	
Dead tree	Means a tree where all processes within all of the vascular tissue has ceased.	
Deck	Refers to an external platform, usually elevated, located alongside and accessible from an interior space.	
Deep soil zones	Areas of natural ground retained within a development, uninhibited by artificial structures and with relatively natural soil profiles. Deep soil zones (DSZs) have important environmental benefits, including; • promoting healthy growth of larger trees and canopies, • protecting existing mature trees, and • allowing infiltration of rainwater to the water table and reduction of stormwater runoff.	
Demolition	Means the complete or partial dismantling of a building or structure including damage, defacement or the relocation of a building or structure.	
Desired Outcome (DO)	A statement of outcome (finished state) that describes certain required development characteristics or performance(s). What is to be achieved. Desired	

Term	**Description/ Explanation**	***Reference/Source***
	Outcomes are usually matched with more specific Development Control Requirement(s), or Requirements, but not necessarily so. Refer also ”Development Control Requirements” DCRs	
Destroy (a tree)	Includes killing, clearing, removing, cutting, burning, ring barking, knocking over, poisoning, lopping, topping or cutting of living branches of a tree, or root system, or damaging a trees root system by compaction, excavation or asphyxiation including unauthorised filling or stockpiling of materials.	
Development	Has the same meaning as it has in the Environmental Planning and Assessment Act 1979. Note: Under the EPA Act, development is defined as: a) the used of land, and b) the subdivision of land, and c) the erection of a building, and d) the carrying out of a work, and e) the demolition of a building or work, and f) any other act, matter or thing referred to in section 26 that is controlled by an environmental planning instrument, but does not include any development of a class or description prescribed by the regulations for the purposes of this definition.	*Environmental Planning and Assessment Act 1979*
Development Lot (1)	Means a parcel of land that is identified for future development subject to separate planning approval.	
Development Lot (2)	Are defined as lots that are not yet developed or subdivided for their ultimate yield. It does not include lots where the proposed subdivision is to separate nonurban land from urban zoned land.	
Development Control Requirements / Development Requirements (DCR)	Are one way of achieving a Desired Outcome (DO). How the DO’s may be achieved. They are generally a more specific measure to achieve the performance oriented Desired Outcome. Refer also ”Desired Outcome” DO.	
Disturbed Land (or Land already disturbed by previous activity)	Means land is disturbed if it has been the subject of human activity that has changed the land’s surface, being changes that remain clear and observable. Examples include ploughing, construction of rural infrastructure (such as dams and fences), construction of roads, trails and tracks (including fire trails and tracks and walking tracks), clearing vegetation, construction of buildings and the erection of other structures, construction or installation of utilities and other similar services (such as above or below ground electrical infrastructure, water or sewerage pipelines, stormwater drainage and other similar infrastructure) and construction of earthworks.	

Term	**Description/ Explanation**	***Reference/Source***
Dual Occupancy	Means a development comprising of no more than two (2) dwellings, be they attached or detached on a single lot.	*Refer KLEP for fuller definition*
Due Diligence	Taking reasonable and practical steps to determine whether a person's actions will harm an Aboriginal object and, if so, what measures can be taken to avoid that harm.	
Dwelling	Means a room or suite of rooms occupied or used or so constructed or adapted as to be capable of being occupied or used as a separate domicile.	
Dwelling house (or single dwelling house)	Means a building and allotment containing only one dwelling.	
Dying (tree)	Means a tree that has declined to a point that no remedial action will prevent death.	
Endangered Ecological Community (EEC)	Means an assemblage of species which can include flora, fauna and other living organisms that occur together in a particular area. An Endangered Ecological Community is an ecological community that is listed as facing a very high risk of extinction in NSW under the Biodiversity Conservation Act 2016.	
Endemic Species	Means species which naturally occur on the NSW Mid-North Coast or cultivars of such species.	
Environmental heritage	Means those places, buildings, works, relics, movable objects and precincts of State or local heritage significance.	
Environmental Planning and Assessment Act 1979 (EP&A Act)	The statutory framework within which State Government and local government guide and control land use and development.	***legislation.nsw.gov.au***
Environmental Weed	Means a plant determined to be an Environmental Weed by the NSW Department of Primary Industries and/or North Coast Weeds Advisory Committee.	Refer ***weeds.dpi.nsw.gov.au*** *Refer also Local Land Services* ***lls.nsw.gov.au*** *Advice on weeds and plant diseases, weed identification and management*
Excavation	Means the removal of soil or rock, whether moved to another part of the same site or to another site, but does not include garden landscaping that does not significantly alter the shape, natural form or drainage of the land.	

Term	**Description/ Explanation**	***Reference/Source***
Fabric	Means all the physical material of the place ("built fabric"). Can also mean building fabric, the outer form and/or skin of the building.	
Façade	The elevation of a building generally facing the street, but may also refer to other external elevations of the building that are visible.	
Fascia Sign	Means an advertising sign attached to the fascia or return of an awning.	
Flood Planning Level (FPL)	A series of datum levels that are used to define the level at which different development must be built relative to the flooding risk in that location and for particular/sensitive development types. Very generally this means the level of 1% AEP + 0.50 mtrs freeboard (also expressed as 1:100 ARI (average recurring interval) flood level plus 0.5m freeboard. However specific FPL guidance must be sought in relation to both location and proposed development type.	*Kempsey Flood Policy*
Flood prone land	Synonymous with flood liable and floodplain, it is the area of land which is subject to inundation by the probable maximum flood (PMF).	*State Environmental Planning Policy Amendment (Flood Planning) 2021* *Kempsey Flood Policy*
Floor	Refers to the space within a building that is situated between one floor level and the next level above or, if there is no floor above, the ceiling of or roof above.	
Floor Space Ratio (FSR)	Means the ratio of the gross floor area of the building to the site area of the land on which the building is or is proposed to be erected. Means the ratio of the gross floor area of all buildings on a site to the site area. Refer also "site coverage".	*Refer KLEP for fuller definition*
Flush Wall Sign	Means an advertising sign attached to the wall of a building (other than the transom of a doorway or display window).	
Freestanding advertisement	Means an advertisement that is displayed on an advertising structure that is mounted on the ground on one or more supports. Freestanding advertisements include pole and pylon signs.	*SEPP (Industry and Employment) 2021 Chpt 3 Advertising and Signage*
Front fences and walls	Refers to fences and walls situated forward of the building façade or within the nominated front building line (setback), whichever is the greater, that are located on the site.	

Term	**Description/ Explanation**	***Reference/Source***
Frontage or primary frontage	Refers to the area of abutment between a boundary line between a site and a public street. In the case of a multi-frontage site, the boundary at which the property is addressed.	
Greenfield Development	Means development on a site that has not previously been used for residential, commercial, industrial or other urban land uses.	
Gross Floor Area (GFA)	Means the sum of the areas of each floor of a building where the area of each floor is taken to be the area within the outer face of the external enclosing walls as measured at a height of 1,400 millimetres above each floor level excluding: (i) columns, fin walls, sun control devices and any elements, projections or works outside the general line or the outer face of the external wall; (ii) lift towers, cooling towers, machinery and plant rooms and ancillary storage space and vertical air conditioning ducts; (iii) car parking needed to meet any requirements of the Council and any internal access thereto; and (iv) space for the loading and unloading of goods.	
Gross Leasable Floor Area (GLFA)	The sum of the area of each floor of a building where the area of each floor is taken to be the area within the internal faces of the walls, excluding stairs, amenities, lifts, corridors and other public areas but including stock storage area.	
Habitable room	Means a space, room or any combination of areas used for domestic activities including: • bedroom, living room, dining room, recreation room, theatre room, study room, sun room, home office or the like, but does not include: • bathroom, laundry, water closet, pantry, walk in wardrobe, lobby, or any other like room or space of a specialised nature that is not occupied frequently or for extended periods.	
Harm (for Aboriginal Objects)	• Destroy, deface, damage and object; • Move an object from the land on which it is situated; and • Cause or permit an object to be harmed.	
Height	Generally distance above ground. Refer to the definition of "Building height." (Height of Building - HoB)	*KLEP definition and KLEP HoB mapping*
Heritage Act 1977	The statutory framework for the identification and conservation of heritage in New South Wales. The Act also describes the composition and powers of the Heritage Council.	

Term	**Description/ Explanation**	***Reference/Source***
Heritage Branch	The State Government agency responsible for providing policy advice to the Minister, administrative services to the Heritage Council and specialist advice to the community on heritage matters.	
Heritage Conservation Area	An area identified in an environmental planning instrument or a State heritage register as having a particular heritage significance. Examples of Heritage Conservation Areas include the Bellbrook and the Gladstone Heritage Conservation Areas.	*Definitions and mapping under KLEP*
Heritage Council	The New South Wales Government's heritage advisory body established under the Heritage Act 1977. It provides advice to the Minister for Planning and others on heritage issues.	
Heritage Curtilage	The area of land and any associated structures surrounding a heritage item that is considered important for understanding and maintaining that item's heritage significance. The curtilage may include immediate grounds, gardens, and site features necessary to give the item context and function, whether it's a single building or a larger precinct. The curtilage may extend beyond the item's legal/property boundary to include surrounding visual elements that contribute to the item's historical and aesthetic integrity.	
Heritage Fabric	All the physical material of an item, including surroundings and contents which contribute to its heritage significance. Refer also "curtilage" and "heritage curtilage".	
Heritage Impact Statement	Identifies the significance of the item, property or relic; assesses the impact that the proposed work will have on this significance and identifies the measures which are proposed to minimise this impact. The Heritage Impact Statement is prepared in accordance with the provisions of the NSW Heritage Manual and its companion documents.	
Heritage Item	Means a building, work, relic, tree or place or a group of buildings, works, relics or trees which is described in Schedule 5 of Kempsey Local Environmental Plan 2013 and shown by heavy edging and hatching on the HER map series accompanying KLEP 2013.	*Definitions and mapping under KLEP*
Heritage Map	Means the map series identified by the term "Heritage Map" and the reference "HER" forming part of Kempsey Local Environmental Plan 2013.	*Definitions and mapping under KLEP*

Term	**Description/ Explanation**	***Reference/Source***
Heritage Precinct	An area or part of an area which has a consistent heritage character, but is not identified or defined as a Heritage Conservation Area. Heritage Precincts are only defined/identified in the DCP and no other planning instruments or legislation. Whereas Heritage Conservation Areas are defined/identified in environmental planning instruments and State government heritage registers. Examples of Heritage Precincts are found in Frederickton, Smithtown, and Kempsey.	
Heritage Significance	Means historic, scientific, social, cultural, archaeological, architectural, moveable, natural or aesthetic significance for past, present or future generations.	
Historic Houses Trust	The State Government organisation responsible for maintaining and managing house museums.	
Historical Significance	An item having this value is significant because of the importance of its relationship to an historical event, period and/or the evolving pattern of our cultural history.	
Illuminated sign	Means a sign which is internally or externally lit by artificial lighting whether that lighting is integral to or separate from the sign, include signs that have flashing or sequenced lighting, spotlighting, directional, and projected or laser lighting.	
Infrastructure Delivery Guide	Kempsey Shire Council's guide for the requirements of new and upgraded infrastructure associated with public and private development. Based on the legislative Acts requirements, SEPP and LEP requirements, AUS-SPEC standards and modified for local conditions and requirements. For Council's purposes, used for the design and construction of infrastructure and related matters (this largely supersedes the *Engineering Guidelines for Subdivision and Development*). To be read and used in conjunction with AUS-SPEC suite of design and construction standards and drawings.	*KSC Infrastructure Delivery Guide.* *Refer also KSC AUS-SPECs*
Impervious area	Means a surface area that does not allow rainwater to penetrate through into the underlying ground.	
Important Vegetation	Means vegetation that has either been identified by an ecological study as being important to the survival of any native flora or fauna or is required to preserve the existing natural character of the locality.	
Indigenous species	Refers to a plant or animal species that occurs at a place within its historically known natural range and that forms part of the natural biological diversity of a place.	
Industrial area or premises	Means an area or place used for industrial or business purposes, whether or not zoned for such purposes.	

Term	**Description/ Explanation**	***Reference/Source***
Infill	Infill development is any allotment that is neighboured or adjoins a property that supports a building, including sites within new subdivisions, where that development has already occurred.	
Initial Subdivision Plan (for Part D1)	Means a plan of subdivision without physical works to create super-lots generally.	
Integrated Development	Means development (not being complying development) that, in order for it to be carried out, requires development consent and one or more of the approvals set out in Section 91 of the Environmental Planning & Assessment Act, 1979 (as amended).	*s4.46 Environmental Planning and Assessment Act 1979 (EP&A Act)*
Integrity	A Heritage Item is said to have integrity if its assessment and statement of significance is supported by sound research and analysis, and its fabric and curtilage are still largely intact.	
Land	Land includes: (a) The sea or an arm of the sea, (b) A bay, inlet, lagoon, lake or body of water, whether inland or not and whether tidal or non-tidal, and (c) A river, stream or watercourse, whether tidal or non-tidal, and (d) A building erected on the land.	
Landscaped area	Means a part of a residential site used for growing plants, grasses and trees, but does not include any building, structure or hard paved area (excludes access paths).	
Local overland flooding	Means inundation by local runoff rather than overbank discharge from a stream, river, estuary, lake or dam.	
Local Park (Open Space)	A park/open space is a distinct and defined physical area that serves a neighbourhood and is located close to or within residential areas.	
Long term resident	In relation to a caravan park, means a person (other than any person who is a caretaker, manager or employee or anyone living with any such person) whose principal place of residence is a movable dwelling place in the park.	
Long term site	Means a dwelling site that is specified in the approval for a caravan park as being a long- term site.	
Lot (or allotment)	Means a separate property created by Torrens title subdivision.	
Major roads	Includes arterial roads and sub-arterial roads.	
Manufactured home	Means a self-contained dwelling (that is, a dwelling that includes at least 1 kitchen, bathroom, bedroom and living area and that also includes toilet and laundry facilities),	*Local Government Act 1993*

Term	**Description/ Explanation**	***Reference/Source***
	being a dwelling: (a) that comprises 1 or more major sections that are each constructed, and assembled, away from the manufactured home estate and transported to the estate for installation on the estate; and (b) that is not capable of being registered under the Traffic Act 1909; and (c) includes any associated structures that form part of the dwelling.	*Local Government (Manufactured Home Estates, Caravan Parks, Camping Grounds and Moveable Dwellings) Regulation 2021*
Manufactured home estate	Means land on which manufactured homes are, or are to be, erected.	*State Environmental Planning Policy (Housing) 2021*
Maximum Site Coverage	Means the ratio of the area of an allotment covered by buildings to the total area of the allotment expressed as a percentage, whether or not those buildings have enclosing walls. Refer also "site coverage".	
Measured Drawing (heritage)	A technical or architectural record of a heritage item to scale, analysing the heritage significance of the fabric (for example, dates of construction and materials).	
Minor roads	Includes collector roads and local roads.	
Mobile home park	Has the same definition ascribed to caravan park (refer to KLEP 2013).	*KLEP*
Movable dwelling	Means: (a) any tent, or any caravan or other van or other portable device (whether on wheels or not), used for human habitation; or (b) a manufactured home; or (c) any conveyance, structure or thing of a class or description prescribed by the regulations (under the Local Government Act 1993) for the purposes of this definition.	*Local Government Act 1993*
National Trust of Australia (NSW)	A community organisation which maintains a register of heritage items and provides advice on heritage issues.	***nationaltrust.org.au***
Natural Area	Areas with significant ecological, scenic or natural character values. An example is National Parks.	
Natural Ground Level	Means the level of the ground before commencement of any site filling or building work carried out either prior to or as a result of the proposed development.	
Natural Heritage Significance	Means natural areas and items (as opposed to cultural items) that have natural heritage significance for their evolutionary, aesthetic, technical/research and social values. The National Parks and Wildlife Service should be	*National Parks and Wildlife Service*

Term	**Description/ Explanation**	***Reference/Source***
	consulted regarding items of natural heritage significance.	
Neighbouring Land	Means any land other than adjoining land, which may be detrimentally affected by the use of the Application Site or the erection of a building on an Application Site (includes properties in a neighbouring Council area).	
Nominated Buffers	For the purposes of **Part B – B2.6 - Conflicting Land Use Environmental Qualities,** "Nominated Buffers" means those horizontal distances identified in the section and table of Chapter B2.6	
Non-habitable room	Spaces of a specialised nature not occupied frequently or for extended periods, including bathrooms, toilets, pantries, walk-in wardrobes, corridors, lobbies, photographic darkrooms and clothes drying rooms.	
Notification	Means giving written notice in accordance with Council's Community Engagement & Participation Strategy.	
Noxious Weed	Means a plant species identified as a noxious weed under the Noxious Weeds Act 1993.	***weeds.dpi.nsw.gov.au*** *Weed List Public*
NSW Heritage Manual	Comprises a series of publications explaining the steps of the NSW Heritage Management System and how they can be applied.	***environment.nsw.gov.au*** *Policy and law* *NSW Heritage Strategy*
Nuisance Emissions	Refers to emissions of noise, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, wastewater, waste products or grit, oil or otherwise.	
Old growth tree	Are those where the canopy is in the late mature to over mature (senescent or partly dying) growth stage, many containing hollows and often with the presence of dieback or dead branches in the crown.	
Open space	Means an area on a site external to the buildings on a site.	
Operable screening device	Refers to sliding, folding or retractable elements on a building designed to provide shade, privacy and protection from natural elements.	
Outbuildings	Means any freestanding building which is on the same allotment as a dwelling (either existing or proposed) not intended to be used for the purposes of human habitation and may include garages, boat or caravan storage, workshops, storage sheds or the like.	
Owner	Means the name and address of the proprietor as registered in Council's property record.	
Parking space or car park	Means a space dedicated for the parking of a motor vehicle, including any manoeuvring space and access to it.	

Term	Description/ Explanation	Reference/Source
Passive solar design	Refers to a design or modification to a building to minimise energy consumption by taking advantage of natural heating and cooling methods.	
Permanent/ perennial watercourse	Means a watercourse that generally flows all-year round but may consist of limited water flows during dry periods.	*Ballina Shire Council – Rous Water Brochure* *1833-1002 Rous Water brochure V8.indd*
Place	Means site, area, land, landscape, building or other works, group of building or other works, and may include components, contents, spaces and surrounds.	
Pole Sign	Means an advertising sign erected on a pole or pylon, independent of any building or other structure.	
Preferred Koala Food Tree	Means any of the following tree species: (a) primary food tree species; and • Tallowwood (E.microcorys); • Forest Red Gum (E. Tereticornis); and • Swamp Mahogany (E. Robusta). (b) secondary/supplementary food tree species • Grey Gum (E. Propinqua); • White Stringybark (E. globoidea); and Stringybark (E. Tinaliae).	*Comprehensive Koala Plan of Management (CKPoM)*
Primary Street Frontage	On corner allotments, refers to the street frontage that forms the principal frontage of the lot, generally being the frontage to which the building's main entry faces, or the frontage associated with the street address where the lot is undeveloped. On allotments with front and rear street frontages, refers to the frontage to the street designed to carry the greater traffic volume, unless otherwise determined by the street address or site context.	
Private Open Space (POS)	Means a defined area of site/land suitable for private outdoor living activities by occupants of a specific dwelling.	
Probability	A statistical measure of the expected chance of flooding (see AEP and ARI).	*KSC Flood Policy*
Probable maximum flood (PMF)	The largest flood that could conceivably occur at a particular location, usually estimated from probable maximum precipitation.	*KSC Flood Policy*
Probable maximum precipitation (PMP)	The greatest depth of precipitation for a given duration meteorologically possible over a given size storm area at a particular location at a particular time of the year, with no allowance made for long-term climatic trends (World	

Term	**Description/ Explanation**	***Reference/Source***
	Meteorological Organisation, 1986). It is the primary input to the estimation of the probable maximum flood.	
Projecting wall sign	A sign projecting in either a horizontal or vertical direction from the wall of a building.	
Promotional sign	A sign on land or a building that advertises either: • goods or services not provided by an occupier of a significant portion of the premises on which the sign is attached, or • an event or activity not conducted on the land or in the building. •	
Protected Land Use	Any land (existing land use activity site) that is likely to have a negative impact on residences through the emission of noise, odour, dust and other nuisance or pollution conflicts. Examples of these types of uses are abattoirs, large sawmills, quarries, stock dip sites and sewerage treatment works.	
Rainwater tank	Means a tank designed for the storage of rainwater gathered on the land on which the tank is situated.	
Reconstruction	Means returning a building or work as nearly as possible to a known earlier state and is distinguished by the introduction of materials (old or new) into the fabric.	
Regional Significance	Items of heritage significance which are fine examples, or rare, at the regional community level.	
Register of the National Estate	The register by the Australian Heritage Commission, listing those places of natural, Aboriginal or historical significance which are part of Australia's heritage. It is now a non-statutory archive and educational resource containing information on over 13,000 places across Australia, which is maintained by the Department of Climate Change, Energy, the Environment and Water (DCCEEW) as a publicly available dataset. The Register was replaced by the National Heritage List and Commonwealth Heritage List, which are now the formal, statutory lists of nationally significant heritage places in Australia.	*Refer* ***nsw.gov.au***
Reliable access	During a flood means the ability for people to safely evacuate an area subject to flooding, having regard to the depth and velocity of flood waters, the suitability of the evacuation route, and without a need to travel through areas where water depths increase.	
Relic	Means any deposit, artefact, object or material evidence that: (a) relates to the settlement of the area that comprises New South Wales, not being Aboriginal settlement,	

Term	Description/ Explanation	Reference/Source
	and (b) is of State or local heritage significance.	
Removal (trees and vegetation)	The ring barking, cutting down, topping, removal, burning, injuring or wilful destruction of any tree or vegetation to which this DCP applies.	
Residential accommodation	A building or place primarily used for people to live in, including single-family homes, apartments, townhouses, and attached dwellings, whether for permanent or temporary residence. Examples range from typical private dwellings like houses and flats to specialized types like boarding houses, residential aged care facilities for the elderly. Refer to KLEP 2013.	*Refer KLEP 2013*
Residential Flat Building (RFB)	A building containing three (3) or more separate dwellings, such as apartments, but does not include attached dwellings or multi-dwelling housing. Refer to KLEP.	*Refer KLEP 2013*
Restoration	Means returning the existing fabric of a building or work to a known earlier state by removing accretions or by reassembling existing components without the introduction of new materials.	
Ring Barking	Means the removal of the outside layers of a tree with the aim of causing death or destruction of the tree through disruption of water and nutrient transportation.	
Risk	Means the chance of something happening that will have an impact. It is measured in terms of consequences and probability (likelihood).	
Roof or sky advertisement	Means an advertisement that is displayed on, or erected above, the parapet or eaves of a building.	
Safely evacuate	Means the ability to leave an area subject to flooding, having regard to the depth and velocity of floodwaters, without the need to travel through areas where water depths increase.	
Secondary Street Frontage (1)	On corner allotments, refers to the street frontage that the principle frontage of the associated building does not face. On allotments with front and rear street frontages, refers to the frontage to the street designed to carry the lesser traffic volume.	
Sediment	Means both mineral and organic matter that is being, or has been moved from its site of origin by transporting agents such as water, wind or gravity to a lower position in the catchment, either above or below sea level.	
Sensitive land use	Area activities identified in an Environmental Planning Instrument (EPI) or Local Environmental Plan (LEP) as having significant environmental features, subject to	

Term	**Description/ Explanation**	***Reference/Source***
	additional local provisions. Sensitive land use means— (a) caretaker's accommodation; or (b) a childcare centre; or (c) a community care centre; or (d) a community residence; or (e) a detention facility; or (f) a dual occupancy; or (g) a dwelling house; or (h) a dwelling unit; or (i) an educational establishment; or (j) a health care service; or (k) a hospital; or (l) a hotel, to the extent the hotel provides accommodation for tourists or travellers; or (m) a multiple dwelling; or (n) a relocatable home park; or (o) a residential care facility; or (p) a resort complex; or (q) a retirement facility; or (r) rooming accommodation; or (s) rural workers' accommodation; or (t) short-term accommodation; or (u) a tourist park; or (v) workforce accommodation.	
Services Sign	Standard white on blue sign used to direct travellers and visitors to essential community facilities and service businesses that may benefit them. Facilities for travellers include: • Public toilets • Rest areas, and • Parking areas Service businesses for travellers include: • Accommodation • Caravan and camping parks • Service stations, and • Service or recreation clubs Community facilities include: • Hospitals • Emergency services • Airports • Schools • Sporting fields and recreation grounds, and • Council facilities (e.g. libraries, public waste depots etc)	*State Environmental Planning Policy (Industry and Employment) 2021 Chpt 3* *KSC Signage Strategy*
Setback (building line)	Refers to the horizontal distance measurable from the outermost point of a buildings elevation (above ground or otherwise), perpendicular, to the site boundary.	
Setting	Means the area around a place, which may include a visual catchment.	

Term	**Description/ Explanation**	***Reference/Source***
Shadow diagram	Refers to a plan illustrating the extent of shadow cast by a specified object or building at predetermined times of the day and year, and that are based on a longitude and latitude for that site.	
Shipping container	Means a purpose-built steel unit, usually rectangular in shape, used or are capable of being used for the purpose of temporarily holding materials and goods for transport by air, road, rail or sea. The most common shipping container size is either 6.1 or 12.2 metres (20 or 40 feet) long by 2.4 metres (8 feet) wide and 2.6 metres (8 feet 6 inches) high. Shipping containers are considered a "building" under the National Construction Code, Local Government Act and the Kempsey Local Environmental Plan and this DCP which in case, they may require a development approval and a construction certificate. Dependent on the site location, use, method of tie down and period of placement. They may also be considered to be a 'temporary structure'.	
Short term resident	Means any person accommodated on a caravan park, other than a long term resident.	
Signage	Means all signs, notices, devices, representations and advertisements that advertise or promote any goods, services or events and any structure or vessel that is principally designed for, or that is used for, the display of signage and includes: • Building identification signs, and • Business identification signs, and • Advertisements to which SEPP Industry and Employment Chapter 3 applies, • But does not include traffic signs or traffic control facilities.	
Silhouette	Building outline viewed against the sky.	
Site (1)	Means an area of land within a caravan park designed for the placement of a movable dwelling but does not include a camp site or an area set aside for the storage of unoccupied movable dwellings.	
Site (2)	Means the land to which the application relates.	
Site (3)	Refers to an allotment or group of allotments of land on which a development either exists or is proposed, and which is identifiable by a 'Folio Identifier' (property title).	
Site occupier	Means the person who occupies a site or camp site on a caravan park or camping ground.	

Term	**Description/ Explanation**	***Reference/Source***
Site coverage	The ratio of the area of an allotment covered by buildings (whether or not those buildings have enclosing walls) to the total area of the allotment expressed as a percentage. This concept is one means of defining and controlling development densities within neighbourhoods.	*Refer also Setbacks, Floor space ratio*
Social Significance	Items having this value are significant through their social, spiritual or cultural association with a recognisable community.	
Special promotional advertisement	Means an advertisement for an activity or event of a civic or community nature, but does not include a wall advertisement.	
Statement of Heritage Impact (SHI)	Means a statement usually in prose form which summarises why a heritage item or area is of importance to present and future generations.	
State Significance	Means items of heritage significance which are fine examples, or rare, at a state community level.	
Statutory	Means those matters which occur as a result of an Act of Parliament (for example, statutory instruments such as environmental planning instruments) and thus have legal force.	
Storey	Includes floors or levels, as the case may be, in a building which may be intersected by the same vertical line, not being a line which passes through any wall of the building, but does not include an uncovered garden, terrace or deck.	
Street alignment	The boundary between land allotments and a street or lane.	
Street frontage height	The vertical distance measured in metres at the centre of the street frontage from the average of the street levels at each end of the frontage to the parapet level of the frontage. The parapet level is the horizontal plane in which at least two thirds of the length of the top of the facade is situated.	
Subdivision	The division of a lot, or parcel of land into two or more lots or other divisions of land. Subdivision creates the legal identity of a land parcel. There are three types of subdivision plans including: • Deposited plans: which most commonly depict a subdivision of an allotment; • Strata plans: which depict the subdivision of a parcel of land to allow multiple occupancy and separate ownership of individual units, e.g. home unit and town house developments; and • Community plans: which depict the development of planned communities of any type where the use of some land is shared.	

Term	**Description/ Explanation**	***Reference/Source***
Submission	Means any letter, fax, e-mail, or other written comments formally received by Council in regard to an application. Comments or posts made on social media are not deemed to be a submission.	
Surrounding land	Means any land, other than adjacent land, which may be affected by the proposed development or use of the site. This definition is similar to, and may be used instead of, neighbouring land.	
Survey plan	A plan prepared by a registered surveyor which shows the information required for the assessment of an application in accordance with the provisions of this Policy.	
Swimming pool	Has the same meaning as in the Swimming Pools Act 1992. Swimming pool means an excavation, structure or vessel: • that is capable of being filled with water to a depth of 300 millimetres or more, and • that is solely or principally used, or that is designed, manufactured or adapted to be solely or principally used, for the purpose of swimming, wading, paddling or any other human aquatic activity, and includes a spa pool, but does not include a spa bath, anything that is situated within a bathroom or anything declared by the regulations made under the Swimming Pools Act 1992 not to be a swimming pool for the purposes of this Act.	*Swimming Pools Act 1992*
Threatened species	Means any species identified or listed under the Biodiversity Conservation Act 2016 as a threatened species, population or endangered ecological community.	*Biodiversity Conservation Act 2016*
Through site link	An enclosed or partly enclosed arcade within development that has a public character, providing right of way and are open and accessible at each end.	
Top hamper sign	An advertisement attached to the transom of a doorway or display window of a building.	
Tourist Facility	Has the same meaning as "Tourist and Visitor Accommodation" as defined in Kempsey LEP 2013.	
Tourist Sign	Standard white on brown sign used to direct the travelling public to Tourist Facilities or places of tourist interest.	
Traffic Management Sign	Means an advertising sign erected by a Public Authority, contractor or other authorised person for the purpose of providing instructions or directions in relation to the management of traffic.	

Term	**Description/ Explanation**	***Reference/Source***
Tree	Any woody-stemmed plant.	
Tree Worker	Means a tradesperson who holds the Australian Qualifications Framework 3 Horticulture (AQF3 Arboriculture) or an international qualification considered equivalent by Council. Refer also Arborist	
Under awning sign	A sign located below or otherwise supported from the underside of an awning.	
Unsuitable Tree	Means a tree species that will have a negative impact on the surrounding native vegetation community as determined by Council Officers or has been planted in a location that the growth habit or mature size of a tree/s may be undesirable as determined by Council.	
Urban growth area	Growth areas mapped in the North Coast Regional Plan and Kempsey Local Growth Management Strategy.	
Vessel	Means any ship, lighter, barge, boat, raft or craft, and any floating object or apparatus used wholly or in part for the conveyance of persons or things by water, of whatever description and however navigated, and includes amphibious vessels, seaplanes, hydroplanes, hydrofoils, hovercraft, sunken or stranded vessels, and the wreck or remains of any vessel.	
Vicinity	When used in reference to land near a heritage item or conservation area means land that has a physical relationship, such as adjoining or adjacent land, or a visual relationship with that item or Conservation Area.	
View	An extensive or long range prospect of particular objects or geographic features.	
View sharing	*View sharing is invoked when a property enjoys existing views and a proposed development would share that view by taking some of it away for its own enjoyment.* *The impact of new development on desirable views enjoyed from existing development is to be assessed utilising the following hierarchy of considerations* 1. ***Assessment****- of views to be affected (iconic/scenic particular/generic, whole/partial) and their value* 2. ***Viewpoints*** *– consideration of the part of the property from which the views are obtained (property room, floor and level, side, front and/or rear)* 3. ***Assess impact*** *– evaluate the existing views and proposed view impact (loss) qualitatively*	*Land and Environment Court - Planning Principles Views – general principles* *Views – impact on public domain views*

(Assess: negligible, minor, moderate, severe or devastating) from the whole of the property

4. ***Reasonableness*** *of proposal – degree to which the proposed development complies with all planning controls or breaches them, and the degree to which the views are impacted by that proposed development*

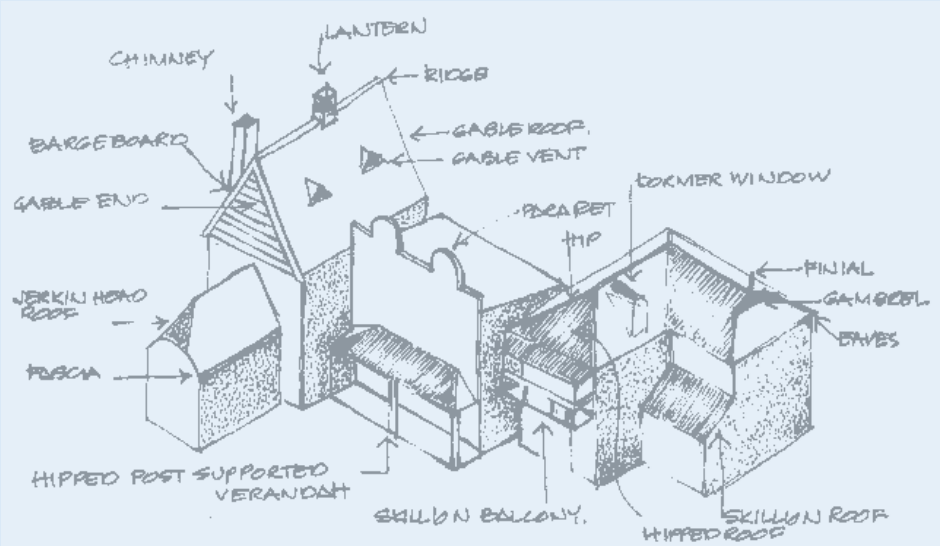
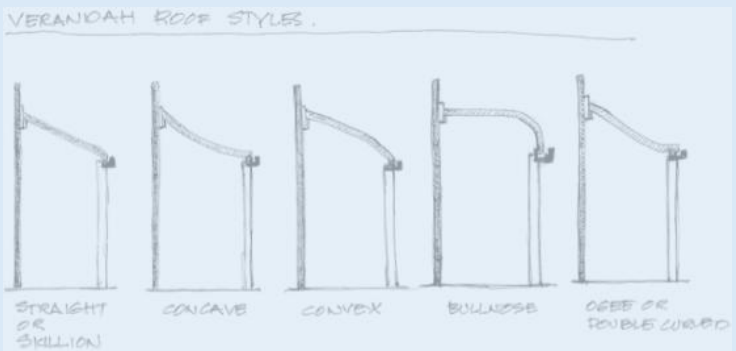
Priority	**Impact**	**Assessment**
1.	Where will views be affected?	Water views are more valuable than land views.
		Whole views are valued more highly than partial views.
2.	Where are views obtained from?	Views across side boundaries cannot be protected by unreasonable requirements.
		Views from sitting positions cannot be protected by unreasonable requirements.
		Views across front or rear boundaries, from a standing position should be protected to a reasonable extent.
3.	Where is the impact?	Will views be retained from other parts of the property?
		Views from living areas and kitchens are more important than from bedrooms and service areas.
		Assess view loss in qualitative terms: negligible, minor, moderate, severe or devastating.
4.	Is the proposal reasonable?	Does the proposal comply with other development controls ?
		If not, even a moderate impact on views may be considered unreasonable.
		If it does comply, would a more clever design provide the same development potential and amenity and reduce the impact on views? If not, impact probably considered acceptable and view sharing reasonable.

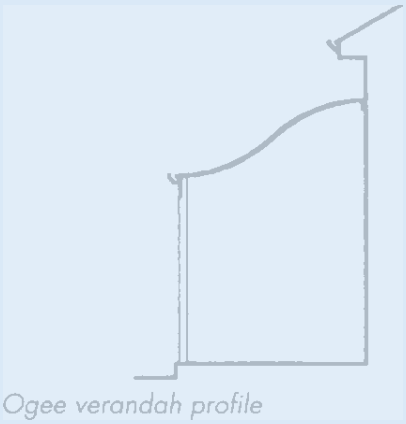
Term	**Description/ Explanation**	***Reference/Source***
Vista	A view along a street terminated by a building or structure such as an obelisk.	
Wall advertisement	Means an advertisement that is painted on or fixed flat to the wall of a building, but does not include a special promotional advertisement or building wrap advertisement.	
Window	Includes a roof skylight, glass panel, glass brick, glass louvers, glazed sash, glazed door, translucent sheeting or other device which transmits natural light from outside a building to the interior.	

1.3 Architectural Terms

Note: The following terms and definitions are reproduced from A Pictorial Guide to Identifying Australian Architecture – R Apperly, R Irving, P Reynolds, Angus and Robinson, 1989 or The City of Adelaide Planning and Design Guidelines, 1995.

Table E.3 – Architectural Terms

Term	**Definition, description**
Architrave	Moulded trim around a doorway or window.
Baluster	A member supporting a handrail or coping. A series of balusters is called a balustrade.
Bargeboard	A sloping board fixed to the end of a gable roof to conceal the roof construction.
Batten	A small piece of timber, usually rectangular in form.
Bay	A compartment of a building such as the space between columns or buttresses. Sometimes a bay projects beyond the wall alignment.
Bearing Wall	A wall giving vertical support to loads applied from above.
Bond	The method of overlapping bricks or masonry blocks to bind them together in a wall. Two of the commonest bonds are English bond where courses of headers (brick ends) alternate with courses of stretchers (brick sides), and Flemish bond, where headers and stretchers alternate in each course.
Bracket	A support, often horizontal member, angled, curved or decorated for a horizontal member.
Building(s)	Has the same meaning as it has in the *Environmental Planning and Assessment Act 1979*.
Building parts	Basic terms for heritage and historic parts of buildings and stylistic adornments 
Bullnose	Used to describe the external shape when a material has been curved through ninety degrees such as a corrugated iron roof. 

Term	Definition, description
Capping	A building element which caps or rests on top of another.
Casement	A window sash hinged on one of its vertical edges so as to open inwards or outwards like a door.
Cornice	A projecting decorative feature along the top of an external or internal wall.
Chamfer	A surface made by cutting across the point at which two right-angled surfaces of a piece of timber or stone meet.
Dormer	A vertical window with its own roof and side walls projecting from a larger sloping roof.
Eaves	The lower edge of a roof.
Facade	The elevation of a building facing the street.
Face Brickwork	Unpainted brickwork of good quality.
Finial	An ornament, usually spike-like pinnacle crowning a gable.
Flashing	Sheets of flexible material such as lead to prevent water access between horizontal and vertical elements on a building.
Frieze	A continuous band of decoration around the top of a building or wall, and a panel of decoration under the edge of a verandah.
Gable	The upper, triangular portion of an external wall at the end of a pitched roof.
Hip	A projecting inclined edge on a roof extending from the ridge to the eaves and having a slope on each side.
Joinery	The timber fittings and fixtures of a house.
Joist	A member directly supporting a floor, roof or ceiling.
Mansard	A four-sided hip roof form characterised by two slopes on each of its sides with the lower slope at a steeper angle than the upper slope. If mansard roofs have dormer windows, they are incorporated into the lower, steeper slope of the roof. 
Moulding	An ornamental contour given to stone, timber, or other material.
Ogee	Shape resembling the letter “S” in profile, generally applied to describing verandah roof shapes.  Ogee verandah profile
Palisade	A fence of vertical pointed wooden stakes or metal rods.

Term	Definition, description
Parapet	A wall built up higher than the eaves line of a roof.
Pediment	A decorative feature edging the gable.
Periods/ Period Styles	**Colonial period**, generally considered 1820 – 1840 across Australia. For regional and remote areas the buildings expressed in this style may date from a later time.



Victorian period, generally considered applying from approximate 1850 – 1900 across Australia. For regional and remoter areas like Kempsey however, the buildings expressed in this style may date from a slightly later time.



Federation Edwardian period, generally considered applying from approximate 1900 – 1920. For regional areas like Kempsey however, the buildings expressed in this style may date from a slightly later time.



Californian Bungalow, generally considered from about 1915 – 1930 across Australia. For regional areas like Kempsey however, the buildings expressed in this style may date from a slightly later time.

Term	Definition, description
	 **Art-deco, Moderne period**, generally applies from approximate 1930 – 1950 across Australia. For regional and remote areas however the buildings expressed in this style may date from a slightly later time.  **Post- War period**, generally applies from approximate 1940 – 1950 across Australia. For regional and remote areas however the buildings expressed in this style may date from a slightly later time. 
Pilaster	A shallow pier attached to or part of a wall.
Pitch	The inclination of a sloping roof to the horizontal.
Porte cochere	A porch, often used in hotel development, large enough for vehicles such as tourist coaches to pass through. Porte cochere is French for 'carriage porch'.
Proportion	The relationship of the size of parts of a building to each and to the whole.

Term	**Definition, description**
Render	A coating of mortar or stucco applied to the surface of a masonry wall.
Ridge	The line at which two intersecting planes of a roof meet.
Roughcast	A rendering of rough material usually containing pebbles or coarse gravel to form an irregular surface.
Spandrel	The sometimes ornamented space between the right or left exterior curve of an arch and an enclosing right angle (SPANDREL Definition & Meaning - Merriam-Webster).
Stucco	A thin decorative finish composed traditionally of lime, sand, and other ingredients applied to external masonry facades.
Tuckpointing	The application of a narrow strip of mortar over the face of the joints in brickwork to give the appearance of precision and regularity.

APPENDIX 2 – HERITAGE REQUIREMENTS FOR HERITAGE ITEMS, HERITAGE CONSERVATION AREAS AND HERITAGE PRECINCTS

2.1 Application

1. This section applies to Items of Environmental Heritage listed in Schedule 5 - Part 1 – Heritage Items of KLEP or Heritage Items within the Kempsey local government area that may be listed in other planning instruments and legislation.
2. This section also applies to any Heritage Conservation Area or Character (Heritage) Precinct as identified in **Part C**.
3. The provisions of this Part override the provisions of any other Part of this DCP, to the extent of any inconsistency.

2.2 Scope

This part outlines the specific planning controls applicable to development and use of land identified as a heritage item as identified in the Application above.

2.3 References

The provisions of this part of the DCP for Heritage Items, Heritage Conservation Areas and Heritage Precincts has relied upon the following documents:

1. Kempsey DCP2013

2.4 Objectives

1. To promote the conservation of heritage items, heritage conservation areas and heritage precincts within Kempsey Shire.
2. To conserve and enhance the heritage character and streetscape values of heritage items, heritage conservation areas and heritage precincts, by providing development guidelines that ensure that development is sympathetic and complementary to heritage conservation areas and heritage precincts.
3. Ensure the development of a heritage item is based on an understanding of, and maintains and conserves, their heritage significance, including the conservation and protection of associated fabric, settings and views.
4. Ensure development in the vicinity of heritage items, heritage conservation areas and heritage precincts is designed and sited to conserve and maintain the heritage significance of the item or place and its setting.

The following desired outcomes and development control requirements in Table E.4 prescribe how the above objectives can be met.

Table E.4 – Heritage Items, Heritage Conservation Areas and Heritage Precincts – desired outcomes and development control requirements

Desired Outcome	*Development Control Requirements*
1. General Development Application Requirements	
1.1 Development involving a heritage item complies with Council's relevant development control requirements.	a. The following information may be required to be submitted with development applications. Pre-lodgement advice from Council will be required to identify which of the following items will be required for the specific development proposal: i. Application form and the prescribed fee; ii. Drawings (existing plan, proposed new work, elevations and sections) to scale,

Desired Outcome	*Development Control Requirements*
	preferably 1:100; iii. Statement of Environmental Effects; iv. Schedule of finishes and samples and/or colour board; v. Archival or photographic record; vi. Statement of Heritage Impact, prepared by a suitably qualified heritage consultant (Guidelines for preparing a SOHI – NSW Environment and Heritage 2023); vii. Character Assessment; viii. Engineering Assessment; ix. Conservation Policy; x. Conservation Management Plan (a combination of a Statement of Heritage Significance, Conservation Policy and Management Guidelines. More information is available in the NSW Heritage Manual and online at www.heritage.nsw.gov.au); xi. An Archaeological Assessment may be required if the site contains archaeological relics or has known archaeological potential.
2. General Requirements	
2.1 Except for built heritage items, the heritage significance and protected character of contributory buildings in heritage conservation areas and heritage precincts applies to the exterior of the building only and where it is visible from the street or other public areas (other than a lane).	a. Additions are not to be visible from the public domain (other than a lane).
2.2 New buildings do not take the form of architectural replicas of heritage items and heritage character buildings.	The application must demonstrate the achievement of this Desired Outcome
2.3 Alterations and additions: a. Respect the architectural character and style of the building and area concerned; b. Provide an appropriate visual setting for heritage items and other elements within heritage conservation areas and heritage precincts.	The application must demonstrate the achievement of this Desired Outcome
3. Heritage Items	
3.1 Heritage items should be changed as little as possible.	a. Where possible, changes to a heritage item includes the retention and conservation of the: i. floor plan ii. existing fabric (interior and exterior) iii. use iv. associations and meanings.
3.2 Heritage items are repainted to match existing painted surfaces in colours sympathetic to the architectural style and period of the building.	a. The traditional heritage colour scheme for the heritage item may be determined based on evidence of how the building originally looked (such as from photographs and paint scrapings) or replicate a colour scheme from the period.

Desired Outcome	*Development Control Requirements*
3.3 Development retains and conserves the three-dimensional fabric and form of built heritage items.	a. Development does not result in the demolition of a heritage item. b. The exterior face(s) of a building with its three-dimensional built form is maintained and conserved, regardless of whether it is visible. c. Fences and outbuildings that contribute to the heritage significance of the heritage item are not demolished.
3.4 Heritage items are adaptively reused where appropriate and the heritage significance of the item is maintained and conserved.	a. Proposed uses of a heritage item should maintain the identified heritage values.
4. Heritage Conservation Areas and Heritage Precincts	
4.1 Development within Conservation Areas and Heritage Precincts is compatible with the heritage significance and heritage character of the area as described in the relevant Conservation Area Significance Statements, Heritage Precinct Significance Statements and Character Analyses contained in **Part C – Place Based Requirements**.	a. The demolition or removal of any building within a Conservation Area/ Heritage Precinct may only be undertaken where the building: i. Does not contain any heritage qualities or contribute to the character of the Conservation Area/Heritage Precinct; or ii. Constitutes a danger to the users or occupiers of that building or the public. b. A suitable replacement building design accompanies any Development Application for a demolition. c. Full archival recording will be required in the case of Demolition of a structure or structures within a Heritage Conservation Area or precinct or at the site of a Heritage Item.
5. Accessibility	
5.1 Disabled access is provided to buildings: a. In accordance with the Disability Discrimination Act, Building Code of Australia and the Premises Standards; and b. In a manner that does not impact on their heritage significance.	a. New development, alterations and additions: i. Do not obscure the appearance or prominence of existing heritage items or buildings that contribute to the character of heritage conservation areas or precincts when viewed from adjoining streets or public areas. ii. Do not obscure important vistas to significant landscape elements that contribute to the setting of the heritage item/conservation area/heritage precinct, such as vistas of rivers, heritage buildings or associated heritage places. iii. Do not involve the destruction of important elements such as chimneys, windows and gables, or the rendering of face brick walls.
6.1 Change of Use and Adaptive Reuse	
6.1 The adaptive re-use or change of use of a building does not adversely affect the heritage significance of the building, conservation area or heritage precinct and character of a place.	a. *Proposed uses of a building should maintain the identified heritage values of the building, conservation area or heritage precinct.*
7.1 Development Size and Scale	
7.1 Alterations and additions respect the character of the surrounding area. 7.2 New uses:	a. Additions to and new buildings do not take an unsympathetic or out of scale form; i. Rear additions/new buildings that are

Desired Outcome	*Development Control Requirements*
a. suit the size and arrangement of the building; and b. do not require substantial changes to the building that negatively impact on its heritage significance. 7.3 The development is of a suitable scale, taking into consideration the following design aspects: c. Compatibility with the main ridge line heights of original surrounding buildings; d. Compatibility with natural ground or street levels; e. Ensuring different parts of the building are in scale and proportion with the whole; f. Ensuring the scale and form of new verandahs relate to the scale and form of those existing in adjacent buildings; and g. The scale of a new house should be related to the size of the allotments laid out in the historical subdivision pattern of the area. h. New buildings should be in scale with surrounding dwellings.	higher than the existing roof ridge; ii. Mansard roofs; iii. Incorporate dormer windows visible from the street; iv. Incorporation of gable ends into existing hipped roof forms; v. Forms that dominate the existing structure; and vi. Large unbroken roof spans, particularly in flat areas of low scale buildings.
8.1 Setbacks	
8.1 The setbacks of new buildings and building additions are compatible with the existing buildings and the streetscape and do not adversely affect the heritage values of any building, heritage conservation area or heritage precinct.	a. Uniform, historical setbacks shall be maintained. b. New development shall retain the same setback where a building has been demolished to make way for new development. c. Setbacks from side boundaries are to be consistent and/or compatible with the setbacks to typical buildings in the immediate vicinity.
9 Facades and Elevations	
9.1 The shape, proportion and placement of openings in visible elevations are similar to that established by the original or older buildings (where appropriate) and contribute to the pattern or rhythm of building facades established along the streetscape.	a. New buildings incorporate the typical proportions of surrounding development, even when using modern materials. b. New buildings establish a neighbourly connection with nearby buildings by way of reference to proportion, material selection and important design elements such as verandahs, chimneys or patterns of openings. c. The façade skyline is castellated to match existing adjoining skylines of original façades, where appropriate. This is particularly relevant in shopping and commercial areas. d. Facades incorporate embellishments and pediments, either consistent with adjoining buildings that are consistent with the historic period, or incorporate appropriate treatment. e. New buildings and additions shall not replicate facade treatments of the existing

Desired Outcome	*Development Control Requirements*
	and neighbouring buildings.
9.2 Except for built heritage items, the heritage significance and protected character of contributory buildings in heritage conservation areas applies to the exterior of the building only and where it is visible from the street or other public areas (other than a lane).	a. Additions are not to be visible from the public domain (other than a lane).
10. Roof Forms and Shapes	
10.1 The characteristic scale, form and massing of roofs are maintained. 10.2 Roofs of extensions are designed so that they relate to and are integrated with the existing roof through pitch, eaves and ridge height. 10.3 Commercial development/redevelopment adopts height, roof form, parapet and silhouettes from neighbouring buildings in order to maintain compatibility with the heritage character of the streetscape/street edge.	Roof Form/Shape a. All roof works should comply with the relevant requirements of the Building Code of Australia / National Construction Code. b. The footprint and form of the existing roofs should not be changed. c. Roof forms of additions to heritage buildings are to be carefully integrated into the existing heritage building. d. If it is important that the roof form remains unaltered, additional rooms are to be added in a detached pavilion form placed at the rear or possibly the side of the existing building. This does not preclude loft space development where it can be accommodated without altering the roof form. e. New roof elements such as dormer windows and skylights should generally not be used where they are visually prominent. "Pop top" additions to roofs are generally discouraged. f. Chimneys are to remain intact as a prominent feature of the built form. Residential Buildings g. A pitched roof of 35° or greater is preferred with a minimum of 25° pitch. The combinations should be one of the following: i. Steep pitched hip roof and skillion verandah; • Hip roof and bullnose verandah; • Dutch gable; • Double and triple gable with bullnose verandah; • Steep pitched gable with skillion verandah; and • Hipped roof and skillion verandah. Commercial buildings g. New roof forms are to be compatible with the shape, pitch, and materials of adjacent buildings. h. Parapet heights and articulation are to be compatible with surrounding buildings. i. New verandahs and awnings are to be based on design principles of traditional verandas of the appropriate era, which may be sloping roofs of

Desired Outcome	*Development Control Requirements*
	galvanised steel and regularly spaced columns.
11. Building and Site Elements – Infill Residential Development	
11.1 New building elements do not replicate existing building elements, as this will make it hard to distinguish between the old and the new. 11.2 The impact on the existing fabric and elements of the building are minimised.	a. New infill residential development incorporates the following important elements: i. Repeat the same size of driveways; ii. Repeat the same pattern of openings; iii. Avoid large paved areas; iv. Incorporate appropriate landscaping; v. Avoid overlooking and over shadowing; vi. Do not copy a heritage item; vii. Garages, outbuildings and driveways shall not dominate the building elevation and street frontage; b. Buildings are in keeping with the architectural character of heritage items and the heritage significance and desired future character of the heritage conservation area or precinct, such as: i. building height, massing and form; style and architectural expression; details; materials; front and side setbacks; orientation and fencing; and ii. prevailing streetscape height and scale. c. Parapets, cornices, spandrels and balconies are to adopt the general horizontal alignments displayed by neighbouring buildings with sympathetic interpretations. d. Awnings, blinds, sun hoods and recessed balconies form integral elements in the design and articulation of facades and should be consistent with the predominant pattern, proportion and repetition of such elements in the street. e. Building elements such as windows, doors, recessed walls and other architectural features are to be used to minimise large expanses of blank walls and glazed areas.
12. Building Materials, Colours and Detailing	
12.1 Materials and colours of the building: a. are appropriate to the significance and character of the building and surrounding area; and b. are compatible with colours used in the building and streetscape. c. repainting of heritage items shall be based on known former colour schemes where possible determined by paint scrapings and analysis of paint layers. **Note** - there are many variances of a heritage colour palette and variations or additional colours will be assessed on their merits, as long as justification is provided and considered in any DA lodged.	a. Additions to heritage buildings shall incorporate traditional combinations of materials that are compatible with the original/existing building. Original materials and details on older buildings can be used as a reference for new elements. b. It may not be appropriate or necessary to replicate the original combination of materials used. For instance, timber weatherboard extensions to brick houses was a common practice which is still appropriate today, as was the use of corrugated iron roofs at the rear of houses behind main roofs constructed with tile or slate. The use of fibre cement planks in view of weatherboard is to be avoided.

Desired Outcome	*Development Control Requirements*
	c. The use of highly reflective materials is to be avoided. d. The use of faux finishes and detailing to replicated heritage buildings and their design is to be avoided. These tend to give an impression of superficial historic detail and are often incorrect in form and proportion. e. Changes to the fabric of a building which is a heritage item shall be: i. Minor; and ii. Reversible. Note - The choice of colour and materials available for heritage buildings are vast. It is suggested that sample panels and/or materials boards be submitted to Council with the DA and be approved in principle through earlier consultation with Council Officers/Heritage Advisor.
13. Roof materials and details	
13.1 Roofing materials and colour used in redevelopment shall be compatible with the roofing materials used in original Heritage Item and within the streetscape of Conservation Areas/Heritage Precincts.	a. The original roof material of a heritage building (slate, tiles or corrugated iron) should not be altered. Where replacement is necessary, materials shall be equal to that being replaced where possible. Alternatively an appropriate substitute can be considered subject to Council's approval. b. Roofing materials should be the same as materials on the existing heritage buildings and those typically used in the conservation area/heritage precinct. c. Repair of roofs is preferred to complete replacement. Any necessary repairs should match the original cladding material - tiles with tiles, iron with iron and slate with slate. If an old roof is of slate or flat asbestos tiles or shingles, repairs should be made so that the original materials are installed on the visible parts of the roof a substitute material used where the roof cannot be seen from the street. Note that repair of a roof can be effected generally without the whole of the cladding being replaced. Such substitution shall be subject to development approval. d. If it is necessary to replace the whole roof and a substitute material is sought, a new roof cladding of corrugated iron may be appropriate subject to the consent authority approval. The use of Colorbond in Heritage Conservation Areas and on Heritage Items is not generally supported. e. Chimneys and roof ventilators and other embellishments of the building should not be removed, it is likely to form an essential part of the aesthetic value of a building. f. Some buildings may need special profiled

Desired Outcome	*Development Control Requirements*
	gutters according to existing detail. These profiles are able to be supplied by metal fabricators and should be used in preference to "continuous" guttering of a differing profile and material. Ogee profile guttering is preferable to modern quad profile on period/traditional buildings. g. Corrugated galvanized steel (or zincalume finish) is a most appropriate roofing material for new buildings in historic areas. Pre finished steel in grey or other shades in some circumstances may also be suitable. The use of Colorbond in heritage conservation areas and heritage precincts and on heritage items is not generally supported. h. Tiles may be appropriate in areas with buildings dating from the 1900's – 1930's. Unglazed terracotta tiles are the most appropriate. i. UPVC downpipes should be avoided in prominent positions.
14. Walls	
14.1 Wall cladding materials and colour used in redevelopment shall be compatible with the wall materials used in the Heritage Item and the streetscape and character of Conservation Areas/Heritage Precincts.	a. Cladding materials which set out to imitate materials such as brick, stone, and weatherboard should be avoided as they tend to detract from the authentic character of the surrounding authentic buildings of heritage value. b. New Buildings are to adopt the following cladding materials, where the context and character of the surrounding development dictates: i. 150mm weatherboards splayed or rusticated profile are generally appropriate for Heritage Conservation Areas or Heritage Precincts areas. Replacing weatherboards with Colorbond siding will not be supported (or is not an acceptable alternative); ii. Bricks should be plain, coloured bricks are preferable with natural coloured mortar struck flush with the brickwork; and iii. Bricks of mixed colours (mottled) should be avoided, as should textured 'sandstock' bricks, unless they complement the surrounding building's material. c. Lightweight materials such as ribbed coloured metals should be avoided on vertical wall or parapet surfaces. d. New face brickwork should match the existing brick in colour and texture, and type of mortar jointing and colour. e. Existing facebrick or stone on heritage items or heritage buildings in a Conservation Area

Desired Outcome	*Development Control Requirements*
	should remain unpainted and unrendered. f. Timber board imitations are not acceptable for additions to heritage items and are not appropriate where visible from the street in Conservation Areas/ Heritage Precincts.
15. Doors and windows	
15.1 Original doors and windows are retained and preserved, where practicable. 15.2 New doors and windows are compatible with similar elements in the existing building, in order to preserve the character of the building.	a. Timber windows and doors are to be retained in existing buildings. b. New doors and windows are to be of materials characteristic to the existing building, locality or of an approved alternative. c. New doors and windows should adopt consistent proportions and sill and head heights present in the existing/surrounding character buildings. d. The proportion, pattern and style of new door and window openings in alterations or additions are compatible with those of the original buildings in the area, particularly where they are visible from the street. e. Alterations are to avoid arbitrary changes to openings or other features which do not fit in with the symmetry or character of the original design. f. Two storey buildings shall provide window openings that are vertical (i.e. taller than their width) g. Window openings are to be detailed through a variety of treatments including brick patterns, projections and pediments. h. Standard windows often come in modules of 900mm wide. Their use should be limited to single or double format only. The most suitable windows are generally double hung, casement, awning or fixed type. i. If a large area of glass is required, vertical mullions should be used to suggest vertical orientation. A large window could also be set out from the wall to form a simple square bay window making it a contributory design element rather than a void.
16. Awnings and veranda posts	
16.1 Original awnings and veranda posts are retained and preserved, where practicable. 16.2 Awnings and veranda posts used in redevelopment are compatible with the awnings and veranda posts used in the Heritage Item and within the streetscape and character of Conservation Areas/Heritage Precincts.	a. Depending on the style and period of the building, awnings can incorporate veranda posts to the footpath subject to: i. Location of posts not posing an obstruction of view of any traffic lights or direction signs; ii. Veranda posts to be non-structural or where existing building fabric prevents cantilevered awnings, the posts are to be designed to ensure that the awning will not collapse if any one post is damaged or fails (i.e. alternate load paths);

Desired Outcome	*Development Control Requirements*
	iii. The owner of the property has public liability insurance that indemnifies Council in the event of any claims for damages that may result from the placement of the posts within Council's road reserve; and b. Council approval being obtained under Section 138 of the Roads Act.
17. Shopfronts	
17.1 The design of original shopfronts is preserved or re-instated, where practicable. Early shopfronts shall be retained as well as recessed entry foyers. 17.2 New shopfronts are compatible with the significance and character of the Heritage Item/ Conservation Area/ Heritage Precinct.	None required. Note - The quality and style of shopfronts is of great importance as they reflect the quality and style of significant architectural buildings, and enhance the character and interest of the commercial streetscape and footways. Early shopfronts not only provide a great sense of quality to the shop through their distinctiveness, they also enhance display areas for merchandise. Retaining original shopfronts is particularly important as they are usually complimentary to the other architectural features of the building where pedestrian's appreciation of the street is primarily at eye level. The reinstatement of shopfronts in keeping with original building design is encouraged. Modern shopfronts with broad area, uninterrupted glazing set in an aluminium frame may be intrusive to the architectural character of the street.
18. Services	
18.1 Service and loading facilities do not detract from the heritage significance and character of the Heritage Item/ Conservation Area/ Heritage Precinct.	a. Service structures, and plant and equipment within a site are to be an integral part of the development and should be suitably screened. b. Any on-site loading, unloading, service vehicle access and circulation areas should be suitably screened from public view. c. Service utilities such as water heaters, air conditioning units, antennae, satellite dishes, P.V. cells and the like should not be located on the principle elevations of buildings or where within view of the street, where practicable. They shall not be affixed to chimneys in any circumstance.
19. Paving and driveways	
19.1 Paving and driveways are to be compatible with the character of the Heritage Item/ Conservation Area/ Heritage Precinct.	a. Preferred materials for driveways include wheel-strips and gravel. Stamped concrete should be avoided. b. Driveways consisting of paired wheel-strips extending from a continuous footpath where existing with a broad concrete apron and gutter crossing are preferable to solid driveways. c. The amount of hard driveway material is not to dominate the street front garden area. Note - A section 138 application (the Roads Act) is required for new gutter crossings and footpath

Desired Outcome	*Development Control Requirements*
	repairs in most instances, contact Council for further details.
20. Landscaping	
20.1 Landscaping provided is to be compatible with the landscape character of the Heritage Item/ Conservation Area/ Heritage Precinct.	a. Landscaping including shrubs, trees and other garden elements maintain the colour, texture, form and visual character of private gardens within the grounds of heritage items and open spaces (streetscapes) within a conservation area or heritage precinct. b. When designing new gardens, reference is to be made to surviving plants which may indicate the earliest garden structure, which are to be worked into the new landscape design. c. Important contributory and structural landscape characteristics such as tree canopy cover or boundary plantings should be retained. d. Trees are to be selected based on the following considerations: i. Utilise varieties that are existing in the area or are similar in form and colour to trees within the area; ii. The appropriateness of their mature height in the proposed location; and iii. The potential of the tree to interfere with retaining walls, services and other structures. e. Hard impervious surfaces are to be kept to a minimum. f. Garden structures should be appropriate to main buildings in terms of placement, scale, style and materials. g. Original surfaces such as close jointed brick paving or stone flagging common to Victorian and Federation sites and pebble aggregate, quarry tile or vitrified mosaic tiled aprons common to later Californian Bungalow styles, are to be retained. h. Generous “soft” landscaped areas should be provided in the front of new residential buildings wherever possible. This will almost always assist in maintaining the character of the streets within Conservation Areas. i. New landscaping should not interfere with the appreciation of significant building aspects such as shopfronts or contributory building facades.
21. Fences	
21.1 Original fences on Heritage Items or properties in Conservation Areas/ Heritage Precincts are retained and preserved, where practicable. 21.2 New fences are compatible with the character (height, scale and form) of neighbouring fences and the character of the heritage item/ conservation area/heritage precinct.	a. Original fences should be retained where possible. b. Fences are to be located on the property boundaries. Fences along the front property boundary are optional. Where there is a high proportion of front fences within a streetscape, a front fence is considered appropriate.

Desired Outcome	*Development Control Requirements*
	c. New fences along any street frontage are to comply with the following requirements: i. The height of new fences match that of sympathetic neighbouring fences and should generally be no higher than 1.2m; ii. The colour scheme of the fence is to match or be compatible with the colour scheme used in the building; iii. Fences should be simple with a level of detail compatible with the house; iv. Fences should not obscure views of the main building (eg house) on site; v. Fencing should generally be open or transparent, or backed with a hedge; vi. Fences should be of a scale compatible with the streetscape; and vii. Front fences should be of materials characteristic to the surrounding area, particular to the street and suitable to the era of the house. Examples include painted timber picket, low masonry and hedges. • Galvanised welded mesh should be avoided; and • Solid materials, such as Colorbond, rendered blockwork and brick should generally be avoided. viii. Street frontage courtyard walls are to be avoided. d. Plain or colour treated metal fences are avoided for conservation areas, heritage precincts or heritage items on any street frontage or side boundary.
22. Ancillary Buildings (e.g. garages, car ports and sheds)	
22.1 Garages, carports and sheds are compatible with the significance and character of the heritage item/conservation area/heritage precinct in terms of location, design and materials.	a. Garages are located at the rear, or set back at the side of a building, where site dimensions allow. Where this is not achievable, garages are to be designed and sited to minimise visual dominance when viewed from the street. b. Garages and carports are to make reference to any established historic patterns in the street. c. The height and width of the carport or garage is to be substantially less than the main building. d. Double garages are to be detached and located behind the rear building line where site dimensions allow. Where this is not achievable. double garages are to be designed to be visually compatible with the scale, form and character of the main building and streetscape. e. Colours and materials should blend into the surrounding landscape. Custom orb steel roof profile and timber board profile cladding wall

Desired Outcome	*Development Control Requirements*
	are common materials used. f. The materials should reflect the style and colours of the main building or dwelling on the land. g. Reflection of the primary building's detailing and ornamentation in the design of the carport or garage is desirable. h. Garages should have simple hipped, gable or skillion roofs or be comparable to the design of the existing main building or dwelling. i. Existing outbuildings should be maintained and reused, wherever possible. j. The pitch of a single garage roof should, in most cases, be comparable or slightly lower than that of the main building – generally 25 – 30°. k. Prefabricated and Colorbond steel sheds are inappropriate in Conservation Areas and in association with Heritage Items and are to be avoided.
23. Signage	
23.1 The scale, type, design, location, materials, colour, style and illumination of any sign are compatible with the design and character of the buildings and do not intrude on the visual qualities of the townscape. 23.2 The architectural characteristics of the building always dominate over signage	a. Signs should generally be located below awning level. b. The number and size of signs located above awning level shall be minimised. c. Materials and colours used in the advertising signage should complement the era of the particular building. i. Back-lit plastic signs are to be avoided; ii. Neon tube signs are to be avoided; and iii. Flashing neon tube signs are not appropriate. d. Placement of advertising signs should avoid obscuring/detracting from important architectural details and ornamentation of the building. The preferred location for signage is on the building façade, awning fascia or below the awning. Signs which project beyond the building roof, parapet and walls should be avoided. e. One or two well placed attractive smaller signs are more appropriate than multiple signs or large advertising signage. i. Large advertising signs are to be avoided. f. Use of letter styles, colours and borders which are reflective of the original building's era is encouraged. Given the Australian vernacular expressed in the architecture of many of the buildings in the Conservation Areas/ Heritage Precincts, the use of "Olde English", "American Showboat" and "American Wild West" type fonts are generally inappropriate. A study of old photographs may show the location and style of advertising used on premises of a similar age/era.

Desired Outcome	*Development Control Requirements*
	g. Signs above awning level may be considered where the architecture provides for a sign panel, and the colours used are appropriate. h. Above Awning Signs are to: i. Be simple in design and avoid a proliferation of advertising which can be confusing and detract from the building, and conservation area; ii. Be located flush with the wall surface; iii. Not be fluorescent neon, multicoloured or internally illuminated where possible; iv. be designed and located sympathetically, so as not to dominate the building nor streetscape; and v. be located within architectural elements of the building using appropriate lettering style, size and colouring (e.g. lettering in glass in shopfronts). i. Projecting wall signs are to be avoided. j. Signs projecting above the line of the roof parapet and the edges of the facade are to be avoided.

APPENDIX 3 – DEVELOPMENT REQUIREMENTS FOR NEW AREAS

West Crescent Head Urban Release Area

Application

1. This section applies to all development on land located at Lot 704 DP 749885 and part Lot 707 DP 1032859, West Crescent Head, within the area bounded by the bold line described in Figure E.1 below.
2. The provisions of this Part override the provisions of any other Part of this DCP, to the extent of any inconsistency.

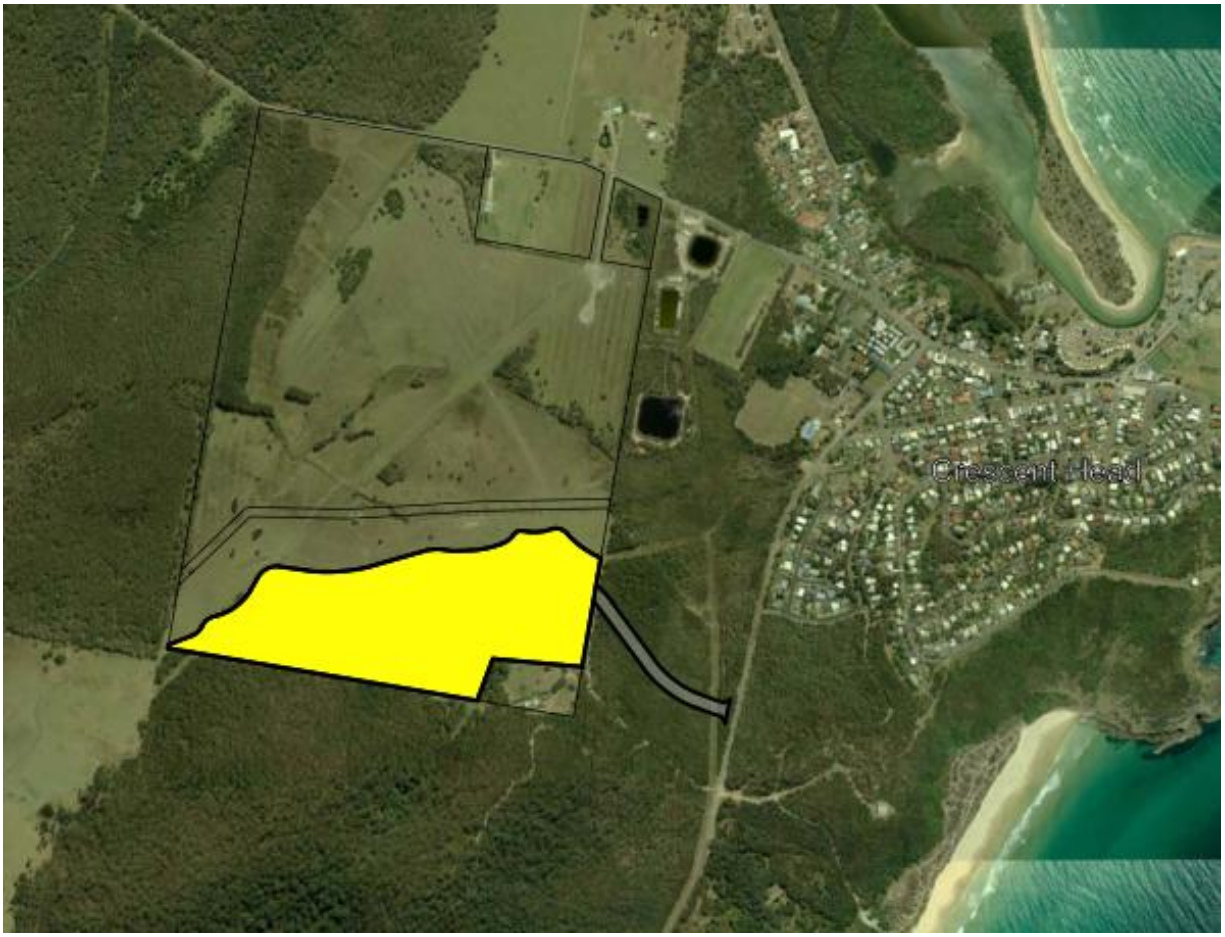


Figure E.1 – West Crescent Head Urban Release Area

Scope

This part outlines the specific planning controls applicable to development and use of land in the West Crescent Head Urban Release Area as identified in the Figure above.

References

The provisions of this part of the DCP for West Cresent Head Urban Release Area has relied upon the following documents:

1. Crescent Head Master Plan, November 2017
2. Kempsey Local Growth Management Strategy, August 2023

Objectives

1. To encourage appropriate development, which is sensitive to the scenic and environmental values of the land.
2. To encourage liveable neighbourhoods and support pedestrian and cycle connectivity with Crescent Head village.
3. To provide for the development of West Crescent Head which:
    a. maintains its village settlement/ residential subdivision character through the management of development height, scale and density and protection of views towards the surrounding scenic landscapes;
    b. maximises its accessibility to the Village Centre to support residential lifestyle opportunities for its residents; and
    c. provides a quality public realm and pedestrian amenity.

Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in Table E.5 prescribe how the above objectives can be met.

Table E.5 – Desired Outcomes and Development Control Requirements – West Crescent Head

Desired outcomes	Development requirements
Preservation	
1. Tree Preservation and Vegetation Management	
1.1 Development establishes a 50 metre wide buffer between the Residential estate (Lot 704 DP 749885 and part Lot 707 DP 1032859) and the National Park (Lot 145 DP 754441) along the southern boundary of the land.	The application must demonstrate the achievement of this Desired Outcome.
1.2 Support the objectives of the C3 Environmental Management zone and the objectives for the protection of scenic character and landscape values under KLEP.	The application must demonstrate the achievement of this Desired Outcome
1.3 A Vegetation Management Plan endorsed by NSW Biodiversity Conservation Division is submitted to Council prior to the issue of a development consent for subdivision.	The application must demonstrate the achievement of this Desired Outcome
2. Scenic Amenity	
2.1 Development protects the scenic amenity values within and surrounding, the West Crescent Head Urban Investigation Area and within Dhalkunggayi (Dulconghi)	The application must demonstrate the achievement of this Desired Outcome
3. Pedestrian and Cycle Connectivity	
3.1 Development provides a safe and convenient network of pedestrian and cycle links from the proposed residential areas precinct to Crescent Head Village.	a. Development provides pedestrian and cycle requirements in accordance with Figure E.2. b. Alternative designs and configurations may be provided where it can be demonstrated that it provides for a better outcome for the future residents of the precinct, in consideration of pedestrian/cycle amenity, safety, ease of use, access options to the village facilities and businesses as well as practicality and construction costs. Pedestrian and cycle links may be separated (on or off road).

Desired outcomes	Development requirements
	c. The pedestrian and cycle network shall integrate with existing and proposed routes as identified in Council's Pedestrian Access and Mobility Plan. d. Pedestrian/cycle pathways shall be provided and designed in accordance with the relevant requirements of KSC's Infrastructure Design Guidelines. e. The shared pedestrian cycle path is completed prior to the issuing of the Subdivision Certificate for the subject site.

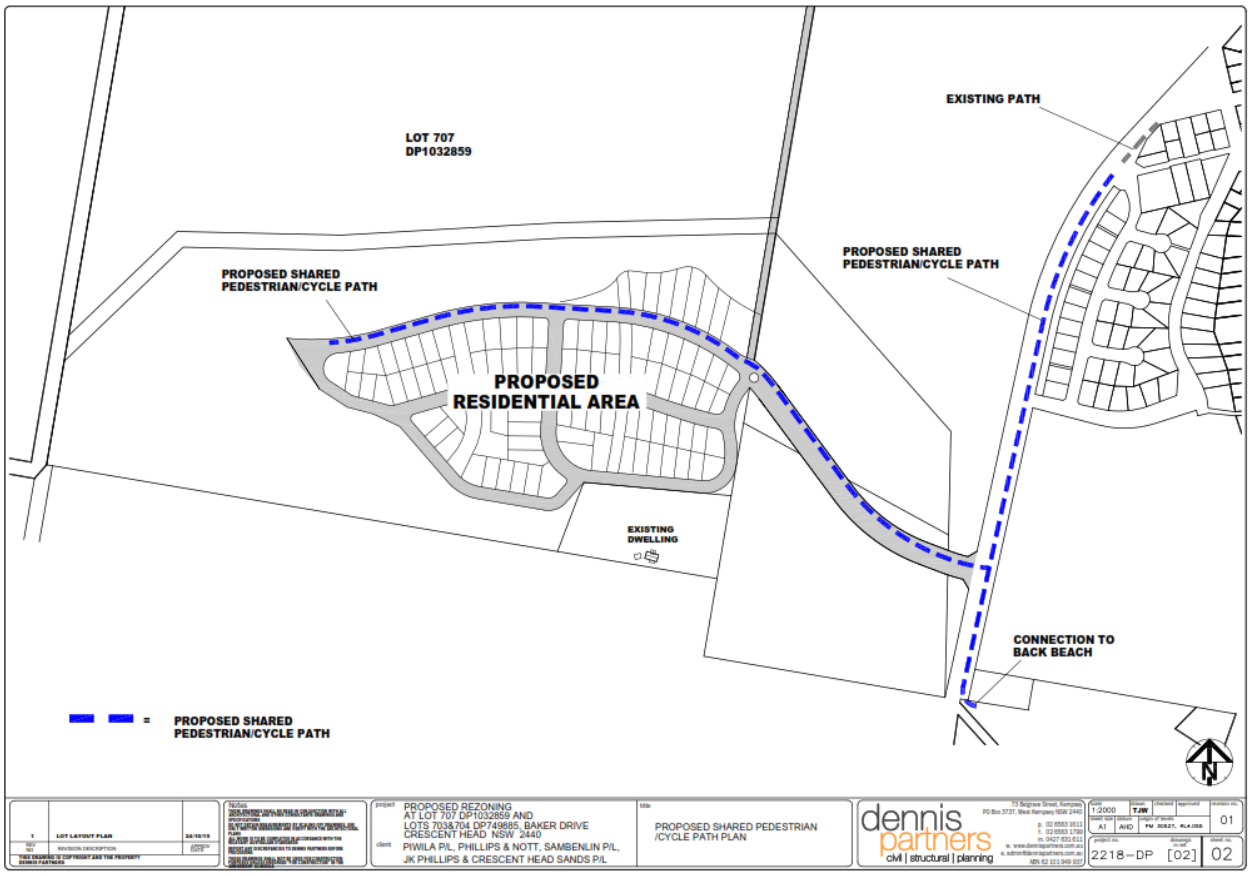


Figure E.2 – Pedestrian and Cycle Requirements

Yarrahapinni Land Release Area

Application

1. This section applies to all development on land located at Lot 333 DP 805299, Yarrahapinni, as shown in the figure below.
2. The provisions of this Part override the provisions of any other Part of this DCP, to the extent of any inconsistency.

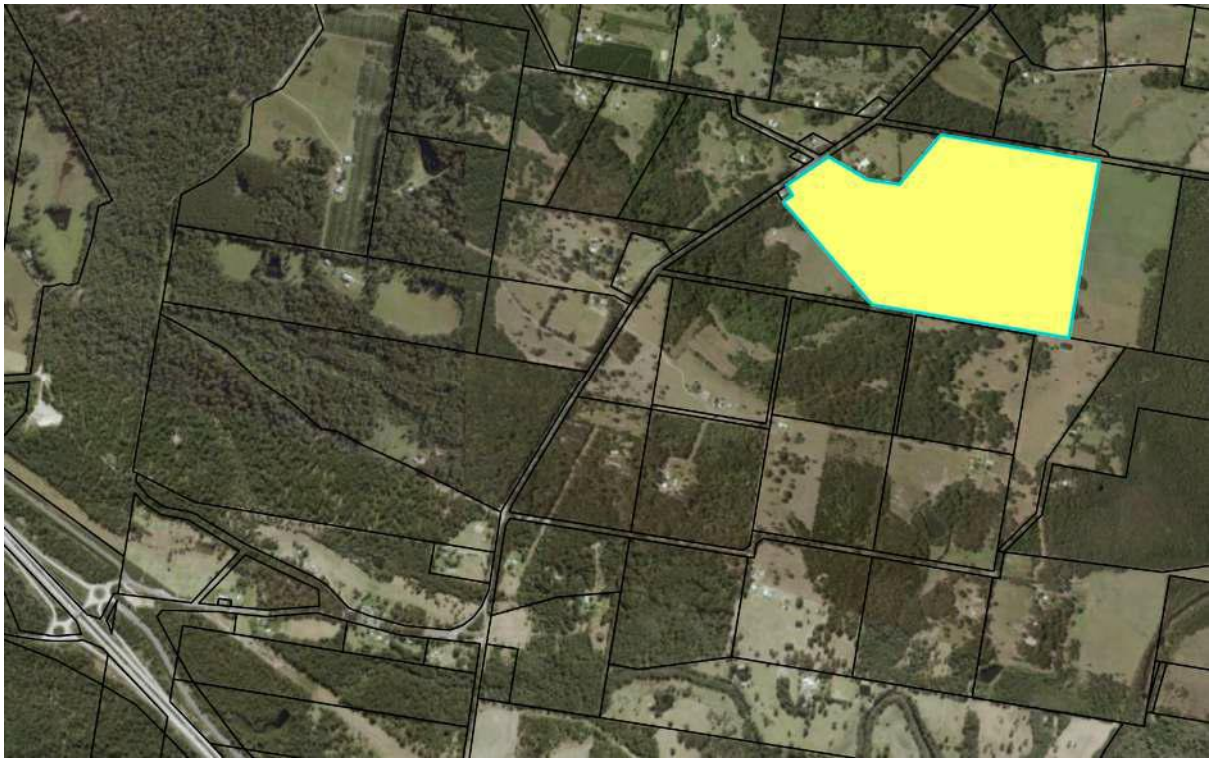


Figure E.3 - Land subject to the provisions of this part (Yarrahapinni Land Release Area)

Scope

This part outlines the precinct-specific planning controls applicable to development and use of land in the Yarrahapinni Land Release Area.

Objectives

1. To ensure that development is in keeping with the existing character of the rural landscape.
2. To encourage appropriate development, which is sensitive to the environmental values of the land.
3. To ensure appropriate on-going management of environmental zoned land.
4. To protect riparian areas and key fish habitats.

Desired Outcomes/Development Requirements

The following desired outcomes and development control requirements in Table E.6 prescribe how the above objectives can be met.

Table E.6 – Desired Outcomes and Development Control Requirements – Yarrahapinni

Desired outcomes	Development requirements
Preservation	
1. Flora and Fauna Habitat	
1.1 Fish habitat conservation and management is undertaken. 1.2 Provide for establishment of a 50 metre wide riparian buffer zone between any development and the waterway to preserve and enhance riparian vegetation, and to avoid impacts on key fish habitat. 1.3 All significant trees on the site are retained and protected.	a. An assessment on fish habitat conservation and management is undertaken in accordance with Section 3.3 of the NSW Department of Primary Industries, Policy and guidelines for fish habitat conservation and management (June 2013). b. Compliance with the policy and guidelines for riparian and freshwater aquatic vegetation (NSW Department of Primary Industries, Policy and guidelines for fish habitat conservation and management) is achieved. c. Riparian buffer zones are to incorporate the maintenance of lateral connectivity between aquatic and riparian habitat. Installation of infrastructure, terraces, retaining walls, cycle ways, pathways and grass verges within the riparian buffer zone shall be avoided or minimized. (NB. buffer distance should be measured from the top of the bank/drainage depression.) d. Clearing of native vegetation should be avoided / minimised in the subdivision design with building envelopes and associated infrastructure (including boundary fences, driveways and Asset Protection Zones) are to be located within existing cleared areas.
2. Vegetation Management Plan	
2.1 A Vegetation Management Plan endorsed by the relevant NSW government department is submitted to Council prior to the issue of a development consent for subdivision. 2.2 Landscaping, tree and vegetation works are undertaken in accordance with the endorsed Vegetation Management Plan.	a. Prior to subdivision of the subject land a Vegetation Management Plan is to be prepared and finalised in consultation with Council and the relevant NSW government department. b. The Vegetation Management Plan shall include measures for: i. conservation / enhancement for retained areas of vegetation within environmental zones; ii. weed control; iii. requirements and active restoration methods, such as planting of native vegetation to enhance the riparian vegetated corridor; iv. maintenance in perpetuity.

APPENDIX 4 – SCHEDULE OF ON-SITE VEHICLE PARKING RATES

Table E.7 – Schedule of On-Site Vehicle Parking Rates

Schedule of On-site Car Parking Rates	
Use	**Minimum parking spaces required (m^2 refers to GFA of premises)**
Part D1 - Development types – parking & related transport requirements ***Subdivision***	
Dependent on subdivision type	Merit Assessment or as per requirements of separate sections contained in this DCP
Part D2 - Development types – parking & related transport requirements ***Residential Development***	
Attached dwellings	1 per 1 or 2 bedroom unit + 1 visitor's space per 4 units, or part thereof. 1.5 per 3+ bedroom unit + 1 visitor space per 4 units, or part thereof.
Boarding houses (in Kempsey)	1 per 3 guest rooms
Boarding houses (elsewhere)	as per `Motels'
Dual occupancies	1 covered space per unit + 1 visitor space per unit (which may be stacked in the driveway in front of the garage/carport)
Dwelling houses	1 covered space per dwelling + 1 visitor space per dwelling (which may be stacked in the driveway in front of the garage/carport)
Group Homes	See relevant SEPP for requirements Affordable Housing
Hostels	1 per 5 beds
Manufactured Home Estates	1 space per site + visitor parking at rates indicated in Local Government (Manufactured Home Estates, Caravan Parks, Camping Grounds and Moveable Dwellings) Regulation 2005.
Moveable Dwelling	1 per dwelling
Multi-dwelling housing	1 covered space per 1 or 2 bedroom unit + 1 visitor space per 4 units, or part thereof. 2 covered spaces per 3+ bedroom unit + 1 visitor space per 4 units, or part thereof.
Residential Care Facilities	See SEPP (Housing) 2021
Residential Flat Buildings	1 covered space per 1 or 2 bedroom unit + 1 visitor space per 4 units, or part thereof. 2 covered spaces per 3+ bedroom unit + 1 visitor space per 4 units, or part thereof.
Rural Worker's Dwellings	1 per dwelling
Secondary dwellings	1 per secondary dwelling
Semi-detached Dwellings	1 covered space per unit + 1 visitor space per unit (which may be stacked in the driveway in front of the garage/carport)

Seniors Housing	See SEPP (Housing) 2021
Shop Top Housing	1 per dwelling + rate required for Shop Two (2) on-site car parking spaces per dwelling, + one (1) space per 4 dwellings for visitor parking, unless it can be demonstrated the commercial area has surplus street parking during the hours 7pm to 7am weekdays and weekends.
Hostels/ residential care facilities	1 per 10 dwellings/ units
Self contained dwellings	1 per 10 dwellings/units
Other General Parking Provisions by Transport Mode (may apply to any of the above developments)	
Bicycle and personal mobility devices (PMDs)	Merit Assessment or as per requirements of separate sections contained in this DCP
Electric vehicles	Merit Assessment or as per requirements of separate sections contained in this DCP
Car share	Merit Assessment or as per requirements of separate sections contained in this DCP
Pick up/drop off points	Merit Assessment or as per requirements of separate sections contained in this DCP
Motorcycles	Merit Assessment or as per requirements of separate sections contained in this DCP
Disability parking	Merit Assessment or as per requirements of separate sections contained in this DCP

Part D3 - Development types – parking & related transport requirements ***Rural/Agricultural***	
Animal boarding or training establishments	1 per dwelling + 1 per 10 animals
Farm-stay Accommodation/ Eco-tourist Facility	1 per dwelling/guest bedroom + 1 for resident/ manager/ caretaker
Holiday Cabins	1 per cabin
Roadside stalls	Minimum 3 off-street parking spaces
Rural Worker's Dwellings	1 per dwelling
Stock and Sale Yard	Minimum 20
Vegetable/Fruit Markets	1 per 20m^2
Veterinary clinics and veterinary hospitals	3 per surgery + 1 per 2 employees
Other General Parking Provisions by Transport Mode (may apply to any of the above developments)	
Emergency vehicles	Merit Assessment or as per requirements of separate sections contained in this DCP
Caravans, trailers and recreational vehicles	Merit Assessment or as per requirements of separate sections contained in this DCP

Part D4 - Development types – parking & related transport requirements ***Business and Commercial***	
Business, Retail and Entertainment	
Bulky goods premises	-
• < 500m2 GFA	1 per 85m^2
• > 500m2 GFA	1 per 2 employees + 1 per 100m^2
Car tyre retail outlets	3 per 100m^2 or 3 per work bay (whichever is the greater)
Entertainment - Cinema/Theatre/ Place of Public Entertainment	1 per 6 seats
Entertainment - Theatres	1 per 10m^2 or 1 per 10 seats, whichever is the greater
Drive In Liquor stores	Merit assessment
Function Centre	1 per 2 employees + 1 per 10m^2
Industry Retail Outlets	Industry + retail premises requirement

Markets	2.5 spaces per stall or 1 per 30m^2 GFA (if within a building.
Neighbourhood shops	1 per employee + 1 per 30m^2
Restaurants or cafes	1 per 7.5m^2 gross floor area of 1 per 3 seats, whichever is the greater
Service stations	1 per employee + 4 per workbay + a minimum of 1 articulated vehicle parking space
Service Stations with Convenience Store	6 spaces per working bay + 1 space per 30m^2
Shops	1 per 35m^2
Shopping centres	4.4 per 100m^2 GLFA (Department stores) + 1 per 35m^2 (shops)
Supermarkets	1 per 3 employees + 1 per 25m^2
Vehicle sales or hire premises	1 space per 200m^2 of display area
Car Wash (single unit)	Holding area for 5 cars with finishing area for 3 cars
Car wash (automatic)	Holding area for 10 cars with finishing area for 5 cars
Commercial Premises	1 per 35m^2
Home Business or Home Occupation	Dwelling requirement + 1 per 2 non- resident employees = 1 visitor space
Office premises	1 per 35m^2
Sex service premises	1 per 2 employees + 1 per bedroom
Community	
Child care centres	1 per 4 children + provision of set down and pick up area adjacent to the entrance of the centre
Community facilities	1 per 30m^2
Funeral Chapels/ Funeral Home	1 per 5 seats, or 2 + 1 per 35m^2, whichever is the greater
Function Centre	1 per 2 employees + 1 per 10m^2
Mortuaries	See Funeral Chapel
Places of Assembly	One per 15m^2 entertainment area or 1 per 10 seats
Places of public worship	1 per 10 seats
Educational	
Primary	1 per 2 employees + 1 per 5 students
Secondary	1 per 2 employees + 1 per 10 students
Tertiary (eg. TAFE)	1 per 2 employees + 1 per 12 students
Food and Beverage	
Clubs, including Registered Clubs	See Pubs
Drive-in Take Away Food Outlet	Requirements for "Takeaway food and drink premises" + queuing area for a minimum of 6 cars
Food and drink premises	For new buildings: 1 per 7m^2 For change of use of existing premises: 1 per 25m^2
Pubs	-
• Bar areas	1 per 4m^2 serviced floor space
• Lounge areas	1 per 5m2 serviced floor space
• Dining areas	1 per 5m^2
• Function rooms	1 per 5m^2
• Accommodation	1 per unit
• Employees	1 per 3 employees
Takeaway food and drink premises	12 per 100m^2 + 1 per 5 seats
Health	

Health services facilities/ medical centres	3 spaces per practitioner + 1 space per employee
Hospitals	Merit assessment
Nursing homes	1 space per 4 beds + 1 space per 2 employees
Veterinary clinics and veterinary hospitals	3 per surgery + 1 per 2 employees
Recreation	
Bowling alleys	3 spaces per alley
Bowling greens	30 spaces per green
Gymnasiums	1 per $25m^2$
Squash courts	3 per court
Tennis courts	3 per court
Tourist	
Backpacker Accommodation	1 per 5 beds
Bed and Breakfast Accommodation	1 space per accommodation room + 1 space for the dwelling
Caravan parks	1 per site + 1 visitor space per 10 sites
Farm-stay Accommodation/ Eco-tourist Facility	1 per dwelling/guest bedroom + 1 for resident/ manager/ caretaker
Hotel or Motel Accommodation	1 per unit + one for manager + 1 per 2 employees + 1 per 3 seats of any associated restaurants or function rooms
Holiday Cabins	1 per cabin
Other General Parking Provisions by Transport Mode *(may apply to any of the above developments)*	
Transport Mode	**Requirements**
Bicycle and personal mobility devices (PMDs)	Merit Assessment or as per requirements of separate sections contained in this DCP
Delivery and servicing vehicles	Merit Assessment or as per requirements of separate sections contained in this DCP
Buses and coaches	Merit Assessment or as per requirements of separate sections contained in this DCP
Electric vehicles	Merit Assessment or as per requirements of separate sections contained in this DCP
Car share	Merit Assessment or as per requirements of separate sections contained in this DCP
Pick up/drop off points	Merit Assessment or as per requirements of separate sections contained in this DCP
Emergency vehicles	Merit Assessment or as per requirements of separate sections contained in this DCP
Caravans, trailers and recreational vehicles	Merit Assessment or as per requirements of separate sections contained in this DCP
Taxis	Merit Assessment or as per requirements of separate sections contained in this DCP
Motorcycles	Merit Assessment or as per requirements of separate sections contained in this DCP
Disability parking	Merit Assessment or as per requirements of separate sections contained in this DCP
Part D5 - Development types – parking & related transport requirements	
Industrial	
Industries	
Industries (excluding light industries), factories	1 per $100m^2$
Light Industries	1 space per $75m^2$ up to $7500m^2$, 1 space per $200m^2$ thereafter, and 1 space per $35m^2$ of office/commercial component.

Marinas	1 per 2 employees + 0.6 per wet berth + 0.2 per dry storage berth + 0.2 per swing mooring.
Road Transport Facilities	1 truck space per vehicle in fleet
Self storage units	1 per 2 employees + 1 per 10 units
Transport/ Truck/ Container depots	1 per 3 employees + 1 per company vehicle associated with the development
Truck stops with overnight accommodation and facilities	1 truck space per motel unit + 1 service space per 3 seats of capacity of which 50% are to be truck spaces
Vehicle body repair workshops	1 per work bay with a minimum of 8
Vehicle repair stations	Minimum 5 or 1 per work bay + 1 per employee, whichever is the greater
Vehicle sales or hire premises	1 space per 200m^2 of display area
Warehouses or distribution centres	1 per 100m^2
Other	
Boat Shed/ Boat Repair Facility/ Boat Launching Ramp	1 per 30m^2 of total use area + space for trailer parking
Vegetable/Fruit Markets	1 per 20m^2
Waste disposal facilities	1 per 100m^2 of site area
Other developments not specified	Merit Assessment or as per requirements of separate sections contained in this DCP.
Other General Parking Provisions by Transport Mode *(may apply to any of the above developments)*	
Transport Mode	**Requirements**
Bicycle	Merit Assessment or as per requirements of separate sections contained in this DCP
Delivery and servicing vehicles	Merit Assessment or as per requirements of separate sections contained in this DCP
Buses and coaches	Merit Assessment or as per requirements of separate sections contained in this DCP
Electric vehicles	Merit Assessment or as per requirements of separate sections contained in this DCP
Car share	Merit Assessment or as per requirements of separate sections contained in this DCP
Pick up/drop off points	Merit Assessment or as per requirements of separate sections contained in this DCP
Emergency vehicles	Merit Assessment or as per requirements of separate sections contained in this DCP
Caravans, trailers and recreational vehicles	Merit Assessment or as per requirements of separate sections contained in this DCP
Taxis	Merit Assessment or as per requirements of separate sections contained in this DCP
Motorcycles	Merit Assessment or as per requirements of separate sections contained in this DCP
Disability parking	Merit Assessment or as per requirements of separate sections contained in this DCP

APPENDIX 5 – LANDSCAPE INFORMATION

Table E.8 – Significant Tree Register

Refo.	*Common Name*	*Botanic Name*	*Individual tree / Group*	*Location*
1	English Plane	*Plantanus x acerifolia*	Individual	Smithtown Public School, Smithtown
2	Camphor laurel	*Cinnamomum camphora*	Group - Cluster	Riverside Park, Park and Belmore Streets Smithtown
3	Fig tree	*Ficus spp (tbc)*	Individual	Riverside Park, Park Street Smithtown
4	Norfolk Pine	*Araucaria heterophylla*	Individual	Riverside Park, Belmore Street Smithtown
5	Magnolia	*Magnolia grandiflora*	Individual	15 Lord Street, East Kempsey
6	Small Leaved Fig	*Ficus obliqua*	Individual	Rudder Park Lord Street, East Kempsey
7	Hoop Pine	*Araucaria cunninghamii*	Individual	Rudder Park Lord Street, East Kempsey
8	North Coast Red Gum	*Eucalypt Rudderi*	Individual	Rudder Park, Lord Street East Kempsey
9	Jacaranda	*Jacaranda mimosifolia*	Group - Avenue	Cemetery Naiooka Street, East Kempsey
10	Silky Oaks	*Grevillea Robusta*	Group - Line	Lord Street, East Kempsey
11	Swamp Cypress/ Bald Cypress	*Taxodium distichum*	Individual	Little Rudder Street, East Kempsey
12	Norfolk Pine	*Araucaria heterophylla*	Group – Cluster	Great North Road, Frederickton
13	Camphor laurel	*Cinnamomum camphora*	Group - Avenue	Southeast section of Memorial Avenue - Old Ferry Road, East Frederickton
14	Camphor laurel	*Cinnamomum camphora*	Group - Line	Northwest section of Memorial Avenue - Macleay Street, Frederickton
15	Norfolk Pine	*Araucaria heterophylla*	Group - Line	Horseshoe Bay Park, Horseshoe Reserve Road South West Rocks
16	Norfolk Pine	*Araucaria heterophylla*	Group - Cluster	Horseshoe Bay Park, South West Rocks
17	Morton Bay Fig	*Ficus macrophylla*	Individual	Horseshoe Bay Park, Horseshoe Bay Reserve Road South West Rocks
18	Small Leaved Fig	*Ficus obliqua*	Individual	Horseshoe Bay Park, South West Rocks
19	Norfolk Pines	*Araucaria heterophylla*	Group - Avenue	Livingstone Street, South West Rocks
20	Norfolk Pines	*Araucaria heterophylla*	Group - Line	Memorial Avenue, South West Rocks
21	Norfolk Pine	*Araucaria heterophylla*	Group - Line	Landsborough Street, South West Rocks

Refo.	*Common Name*	*Botanic Name*	*Individual tree / Group*	*Location*
22	Norfolk Pine	*Araucaria heterophylla*	Individual	Gregory Street, South West Rocks
23	Scribbly Gum	*Eucalypt racemosa*	Individual	Old Cemetery, Arakoon South West Rocks
24	Bunya Pine	*Araucaria bidwillii*	Individual	Carpark Lanes Lane, Kempsey
25	Australian Red Cedar	*Toona ciliata*	Group - Cluster	Old Post Office Smith Street, Kempsey
26	Australian Red Cedar	*Toona ciliata*	Group - Line	Belgrave Street, Kempsey
27	Dawn Redwood	*Metasequoia glyptostrobodies*	Individual	Services Club Park, Holman Street Kempsey
28	Silk Floss Tree	*Ceiba speciosa*	Individual	Services Club Park, Holman Street Kempsey
29	Flame Tree	*Brachychiton Acerifolius*	Individual	Services Club Park, Holman Street Kempsey
30	Lemon Scented Gum	*Corymbia citriodora*	Group - Line	Broughton Street, West Kempsey
31	Norfolk Pine	*Araucaria heterophylla*	Individual	Memorial Avenue, Gladstone
32	Small Leaved Fig	*Ficus obliqua*	Individual	Memorial Avenue, Gladstone
33	Forest Red Gum	*Eucalyptus tereticornis*	Individual	Rodeo Grounds Main Road, Willawarrin
34	Broad-leaved Paperbark	*Melaleuca quinquinervia*	Group - Avenue	Straight Street, Hat Head

Table E.9 – Landscape Tree Species Suitability

Name		Eventual size range	Necessary Planting Space	Planting specs	Suitable applications			
Common Name	Botanic Name	Height X Canopy spread	Area m	Size @ Install	Parks & Open Spaces	Road reserve	Environ areas	Dev Lots
Large Trees								
Bonewood	*Aradenia euodiiformis*	30 x 10 mtrs	2.0 x 2.0 mtrs	25L to 100L	■			
Blackbutt	*Eucalyptus pilularis*	40 x 20 mts		25L to 100L			■	
Black Booyong	*Argyrodendron actinophyllum*	50 x 20 mts		25L to 100L			■	
Black Plum	*Pouteria australis*	25 x 15 mts		25L to 100L			■	
Bolly Gum	*Litsea reticulata*	30 x 18 mts		25L to 100L	■		■	
Broad Leafed Paperbark	*Melaleuca quinquenervia*	25 x 10 mts		45L to 100L	■		■	
Brown Bolly Gum	*Litsea australis*	20 x 12 mts		25L to 100L	■		■	
Brushbox	*Lophostemon confertus*	20 x 15 mts		45L to 100L	■		■	■
Cabbage Fan Palm	*Livistona australis*	25 x 5 mts		45L to 100L	■	■	■	■
Celerywood	*Polyscias elegans*	20 x 5 mts		25L to 100L	■		■	■
Coachwood	*Ceratopetalum apetalum*	30 x 8 mts		25L to 100L	■		■	
Coogera/Rose-leaf Tamarind	*Arytera divaricata*	20 x 10 mts		25L to 100L	■		■	■
Corkwood	*Endiandra sieberi*	25 x 10 mts		25L to 100L			■	
Cudgerie	*Flindersia schottiana*	15 x 7 mts		25L to 100L	■	■	■	
Flooded Gum	*Eucalyptus grandis*	50 x 40 mts		45L to 100L			■	
Forest Oak	*Allocasuarina torulosa*	25 x 10 mts		45L to 100L	■		■	■
Forest Red Gum	*Eucalyptus tereticornis*	40 x 30 mts		45L to 100L	■		■	
Golden Ash	*Hodgkinsoniana ovatiflora*	25 x 8 mts		25L to 100L			■	
Green Bolly Gum	*Neolitsea australiensis*	30 x 18 mts		25L to 100L			■	
Green-leaved Rose Walnut	*Endiandra muelleri*	20 x 12 mts		25L to 100L			■	
Grey Ironbark	*Eucalyptus placita*	25 x 15 mts		45L to 100L	■		■	
Grey Myrtle	*Backhousia myrtifolia*	20 x 4 mts		45L to 100L	■		■	■
Grey Walnut	*Beilschmiedia elliptica*	25 x 10 mts		25L to 100L	■		■	
Hairy-leaved Doughwood	*Melicope micrococca*	20 x 15 mts		25L to 100L			■	
Hill Water Gum	*Tristaniopsis collina*	25 x 8 mts		25L to 100L	■		■	■
Horsetail Sheoak	*Casuarina equisetifolia*	20 x 10 mts		25L to 100L	■		■	
Illawarra Flame Tree	*Brachychiton acerifolius*	15 x 4 mtrs		45L to 100L	■		■	■
Koda	*Ehretia acuminata*	25 x 12 mts		25L to 100L			■	
Large Fruited Grey Gum	*Eucalyptus biturbinata*	30 x 30 mts		45L to 100L			■	

Name		Eventual size range	Necessary Planting Space	Planting specs	Suitable applications			
Common Name	Botanic Name	Height X Canopy spread	Area m	Size @ Install	Parks & Open Spaces	Road reserve	Environ areas	Dev Lots
Lilly Pilly	*Syzigium leuhmanii*	15 x 5 mts		45L to 100L				
Maidens Blush	*Sloanea australis*	20 x 8 mts		25L to 100L				
Murrogun	*Cryptocarya microneura*	25 x 12 mts		25L to 100L				
Native Olive	*Olea paniculata*	25 x 12 mts		25L to 100L				
Native Tamarind	*Diploglottis australis*	20 x 8 mts		25L to 100L				
Olivers Sassafras	*Cinnamomum oliveri*	30 x 15 mts		25L to 100L				
Pink Bloodwood	*Corymbia intermedia*	30 x 15 mts		45L to 100L				
Pink Laceflower	*Archidendron grendiflorum*	15 x 7 mts		25L to 100L				
Pepperberry	*Cryptocarya obovate*	40 x 15 mts		25L to 100L				
Purple Cherry	*Syzygium crebrinerve*	15 x 8 mts		25L to 100L				
Python tree	*Gossia bidwillii*	25 x 8 mts		25L to 100L				
Red Ash	*Alphitonia excelsa*	20 x 15 mts		25L to 100L				
Red Cedar	*Toona ciliata*	40 x 20 mts		45L to 100L				
Red Mahogany	*Eucalyptus resinifera*	35 x 15 mts		45L to 100L				
River Oak	*Casuarina cunninghamiana*	30 x 12 mts		45L to 100L				
Rose Maple	*Cryptocarya rigida*	30 x 15 mts		25L to 100L				
Rose Walnut	*Endiandra discolour*	25 x 12 mts		25L to 100L				
Sassafras	*Doryhora sassafras*	30 x 10 mtrs		25L to 100L				
Saw-tooth Banksia	*Banksia serrata*	15 x 6 mts		45L to 100L				
Scribbly Gum	*Eucalyptus signata*	25 x 20 mts		45L to 100L				
Scrub Beefwood	*Stenocarpus salignus*	15 x 8 mts		25L to 75L				
Scrub Ironwood	*Gossia acmenoides*	18 x 10 mts		25L to 100L				
Scrub Turpentine	*Rhodamnia rubescens*	25 x 10 mts		25L to 100L				
Small Fruited Grey Gum	*Eucalyptus propinqua*	40 x 20 mts		45L to 100L				
Small Leaf Fig	*Ficus obliqua*	25 x 20 mts		45L to 100L				
Small-leafed Tuckeroo	*Cupaniopsis parvifolia*	20 x 8 mts		45L to 100L				
Smooth Quandong	*Elaeocarpus obovatus*	25 x 6 mts		45L to 100L				
Spotted Gum	*Corymbia maculata*	30 x 10 mtrs		45L to 100L				
Strangler Fig	*Ficus watkinsiana*	35 x 60 mts		45L to 100L				
Swamp Mahogany	*Eucalyptus robusta*	30 x 20 mts		45L to 100L				
Swamp Oak	*Casuarina glacua*	30 x 12 mts		45L to 100L				

Name		Eventual size range	Necessary Planting Space	Planting specs	Suitable applications			
Common Name	Botanic Name	Height X Canopy spread	Area m	Size @ Install	Parks & Open Spaces	Road reserve	Environ areas	Dev Lots
Sydney Blue Gum	*Eucalyptus saligna*	45 x 25 mts		45L to 100L				
Rose Satinash	*Syzgium francisii*	15 x 10 mts		45L to 100L				
Rosewood	*Dysoxylon fraserianum*	25 x 8 mts		25L to 100L				
Tallowwood	*Eucalyptus microcorys*	40 x 20 mts		45L to 100L				
Turpentine	*Syncarpia glomulifera*	25 x 12 mts		25L to 100L				
Water Gum	*Tristaniopsis laurina*	15 x 6 mts		45L to 100L				
Weeping Lilly Pilly	*Syzigium floribunda*	25 x 10 mts		45L to 100L				
White Bolly Gum	*Neolitsea dealbata*	20 x 10 mts		25L to 100L				
White Sandpaper Fig	*Ficus fraseri*	15 x 20 mts		45L to 100L				
Yellow wood	*Acronychia oblongifolia*	20 x 6 mtrs	2.0 x 2.0 mtrs	25L to 100L				
Medium Trees								
Beach Birds-eye	*Alectryon coriaceus*	6 x 4 mts		25L to 75L				
Birdlime Tree	*Pisonia umbellifera*	15 x 8 mts		25L to 75L				
Black Sheoak	*Allocasuarina littoralis*	8 x 4 mts		25L to 75L				
Black Wattle	*Callicoma serratifolia*	10 x 4 mts		25L to 75L				
Bleeding Heart	*Homalanthus populifolius*	6 x 5 mts		25L to 75L				
Blueberry Ash	*Eleocarpus reticulatus*	10 x 4 mts		45L to 100L				
Blur Cherry	*Syzygium oleosum*	15 x 8 mts		45L to 100L				
Bolwarra	*Eupomatia laurina*	8 x 5 mts		25L to 75L				
Boobialla	*Myoporum acuminatum*	13 x 10 mts		25L to 75L				
Brown Kurrajong	*Commersonia bartramia*	12 x 6 mts		25L to 75L				
Brown Myrtle	*Choricarpia leptopetala*	10 x 5 mts		25L to 75L				
Brown Pine	*Podocarpus elatus*	15 x 8 mts		25L to 75L				
Brush Caper Berry	*Capparis arborea*	8 x 5 mts		25L to 75L				
Brush Cherry	*Syzigium australe*	12 x 5 mts		25L to 75L				
Brush Kurrajong	*Commersonia fraseri*	4 x 8 mts		25L to 75L				
Brush Muttonwood	*Myrsine hoeittiana*	14 x 6 mts		25L to 75L				
Cheese Tree	*Glochidion ferdinandi*	10 x 10 mts		25L to 75L				
Coast Hibiscus	*Hibiscus tilaceus*	9 x 14		25L to 75L				
Coastal Banksia	*Banksia integrifolia*	8 x 6mts		45L to 75L				
Flax-leaved Paperbark	*Melaleuca linarifolia*	10 x 4 mts		45L to 75L				
Foambark	*Jagera pseudorhus*	10 x 5 mts		25L to 75L				
Forest Oak	*Allocasuarina torulosa*	10 x 10 mts		25L to 75L				
Geebung	*Persoonia stradbrokensis*	8 x 5 mts		25L to 75L				

Name		Eventual size range	Necessary Planting Space	Planting specs	Suitable applications			
Common Name	Botanic Name	Height X Canopy spread	Area m	Size @ Install	Parks & Open Spaces	Road reserve	Environ areas	Dev Lots
Green-leaved Grass Tree	*Xanthorrhoea malacophylla*	9 x 3 mts		45L to 100L				
Guioa	*Guioq semiglauca*	14 x 10 mts		25L to 75L				
Jackwood	*Cryptocaria glaucescens*	10 x 5 mts		25L to 75L				
Leather Oak	*Helicia glabriflora*	14 x 8 mts		25L to 75L				
Lemon Myrtle	*Backhousia citriodora*	8 x 4mts		45L to 100L				
Lilly Pilly	*Syzigium smithii*	14 x 4 mts		45L to 100L				
Native Celtis	*Celtis paniculata*	14 x 5 mts		25L to 100L				
Native Frangipani	*Hymenosporum flavum*	8 x 6 mts		45L to 100L				
NSW Christmas Bush	*Ceratopetalum gummiferum*	10 x 6 mts		45L to 100L				
Oblong-leaved Tulip	*Harpullia hillii*	14 x 8 mts		25L to 100L				
Oyster Bay Pine	*Callitris rhomboidea*	12 x 4 mts		25L to 75L				
Prickly Paperbark	*Melaleuca nodosa*	10 x 4 mts		45L to 100L				
Prickly-leaved Paperbark	*Melaeuca stypheliodes*	20 x 10 mts		45L to 100L				
Red Kamala	*Mallotus philippensis*	12 x 8 mts		25L to 75L				
Red Olive Plum	*Elaeodendron australe*	10 x 5 mts		25L to 100L				
Rough Tree Fern	*Cyathea australis*	10 x 5 mts		45L to 100L				
Satinwood	*Phebalium squamulosum*	12 x 4.5 mts		25L to 75L				
Scentless Rosewood	*Synoum glandulosum*	8 x 4 mts		25L to 75L				
Screw Pine	*Pandanus tectorius var. australianus*	10 x 10 mts		45L to 100L				
Snow Wood	*Pararchidendron pruniosum*	12 x 5 mts		25L to 75L				
Straw Tree Fern	*Cyathea cooperi*	10 x 6 mts		25L to 75L				
Sweet Pittosporum	*Pittosporum undulatum*	12 x 7 mts		25L to 75L				
Tree Heath	*Trochocarpa laurina*	12 x 5 mts		25L to 75L				
Tuckeroo	*Cupaniopsis ancardioides*	10 x 8 mtrs	1.5 x 1.5 mtrs	45L to 100L				
Turnipwood	*Akania bidwillii*	12 x 7 mts		25L to 75L				
Veiny Wilkea	*Wilkea huegliana*	6 x 4 mts		25L to 75L				
Weeping Bottlebrush	*Callistemon viminalis*	8 x 4 mts		45L to 100L				
Willow Bottlebrush	*Callistemon salignus*	8 x 5 mts		45L to 100L				
Yellow Persimmon	*Diospyros australis*	10 x 3 mts		25L to 100L				
Small Trees								
Crimson Bottlebush	*Callistemon citrinus*	4 x 4 mtrs	1.0 x 1.0 mtrs	25L				
Grey Grass Tree	*Xanthorrhoea glauca*	5 .5 x 2		45L to 100L				

Name		Eventual size range	Necessary Planting Space	Planting specs	Suitable applications			
Common Name	Botanic Name	Height X Canopy spread	Area m	Size @ Install	Parks & Open Spaces	Road reserve	Environ areas	Dev Lots
Jacksonia	*Jacksonia scoparia*	5 x 3 mts		Dependent on stock availability				
Narrow-leaved Geebung	*Persoonia linearis*	5 x 3.5 mts		300mm				
Plum Myrtle	*Pilidostigma glabrum*	5 x 4 mts		300mm - 25L				
Tree Shaggy Pea	*Oxylobium robustum*	3 x 2.5 mts		300mm - 25L				
Wallum Banksia	Banksia aemula	5 x 3 mts		300mm - 25L				

Table E.10 - Exotic Plant Species List

Name		Eventual size range	Necessary Planting Space	Planting specification	Suitable applications			
Common Name	Botanic Name	Height X Canopy spread	Area m	Size @ Install'n	Parks & Open Spaces	Road reserve	Environ areas	Dev Lots
Large Trees								
Liquidamber	Liquidamber styraciflua	30 x 25 mts		45L to 100L				
London Plane Tree	Platanua X Acerifolia	35 x 25 mts		45L to 100L				
Medium Trees								
Chinese Poplar	Populus simonii	12 x 3 mts		45L to 100L				
Lipstick Maple	various varieties	10 x 12mts		45L to 100L				
Japanese Elm Zelcove		14 x 4 mts		45L to 100L				
Tulip Tree	Liriodendron tulipifera	13 x 8 mts		45L to 100L				
Small Trees								
Japanese Maple	Acer Palmatum	4 x 4 mts		45L to 100L				

APPENDIX 6 – ON-SITE SEWAGE AND WASTEWATER MANAGEMENT

Application

This section applies to all land within Kempsey local government area that is not capable of being connected to a reticulated sewerage system, and to development that generates the need for a sewage management system.

This section applies to applications for development involving building works, commercial activities and development applications for subdivision (refer **Part D - Development requirements**).

References

This section also relates to the ***Kempsey On-site Sewage Management Strategy*** (OSMS Strategy) contained within Kempsey Shire Council's suite of Development Policies. Overall and procedural requirements regarding the installation and operation of a sewage management system are outlined in the OSMS Strategy.

Planning and technical requirements for development are contained within this section.

Both the OSMS Strategy and this technical section refer to the following:

c) Australian Standards:
- AS/NZS 1547:2012 - On-site Domestic Wastewater Management; and
- AS/NZS 3500.5:2000 - National Plumbing and Drainage Domestic Installations.

c) Guidelines:
- Onsite Wastewater Management Guidelines April 2025 – ;
- NSW Plumbing and Drainage Code of Practice 2006; and
- NSW Health – Greywater Reuse in Sewered Single Domestic Premises (May 2008)
- Healthy Estuaries for Healthy Oysters - Guidelines for development near waterways

c) Legislation:
- Local Government Act 1993;
- Local Government (General) Regulation 2021; and
- Protection of the Environmental Operations Act 1997.

The following Council Policies, or their current equivalent, are relevant to this section:
- Policy No 1.8: On-site Sewerage Management;
- Policy No 3.2: Sewer Services Policy; and
- Procedure 3.2.6: Developer Service Charges for Water and Sewer where Allotments are Vacant and park of an Existing Assessment.

Note: A ***separate approval*** issued in accordance with the *Local Government Act 1993* is required for any of the following:

- Installation of an on-site sewage management system (OSMS) system;
- Alteration/modification of an OSMS system
- Operation of an OSMS system;
- A Commercial Sewage Management Facility or a Package Wastewater Treatment Plant; or a
- Greywater treatment system.

Such approvals are required in addition to any development consents issued for development.

Objectives

1. To ensure developments are provided with suitable provision to dispose of effluent.
2. To dispose of effluent in an environmentally safe manner.
3. To protect surface water, stormwater, waterways, land, vegetation, public health and community amenity from the impacts associated with on-site sewage management (OSMS) systems.
4. To encourage the re-use of resources (including nutrients, organic matter and water).
5. To ensure that appropriate measures are adopted should OSMS's be constructed in flood affected (or other high risk) areas.

It is recognised that not all sites have natural characteristics suitable for on-site disposal of effluent. Excessive slope, flood potential, high ground water and other features may be considered as site limitations when undertaking feasibility or evaluation of a site for the purposes of an on-site sewage management system. In these cases, the site may need to be improved, or an alternative system employed.

The following desired outcomes and development control requirements in Table E.10 prescribe how the above objectives can be met.

Table E.11 – On-site sewage management systems – desired outcomes and development control requirements

Desired Outcome	*Development Control Requirements*
1. *Site*	
1.1 On-site wastewater disposal is designed and located to have no negative effect on the community and the natural environment.	a. The development proposal demonstrates that the site is suitable for an on-site wastewater disposal system that; I. Is located away from flood areas, waterways and water supply II. Prevents pollution from microbial, organic or nutrient sources to soils or receiving waters (including groundwater III. Is supported by an On-site Sewage Management Assessment Report indicating appropriate soils and water table depth for the system IV. Causes no spread of disease or risk to public health by micro- organisms V. Does not spread foul odours VI. Provides a reserve irrigation area VII. Minimises cumulative impacts VIII. Does not encourage insects/vermin IX. Ensures persons do not come into contact with untreated sewage or effluent (whether treated or not) during ordinary activities on the premises X. Minimises adverse impacts on the amenity of the premises and surrounding lands; and XI. Locating the effluent disposal area downhill from potential/existing home sites
1.2 Effluent disposal meets the provisions of the Kempsey OSMS Strategy (refer KSC Development Policies) and requirements of relevant regulation.	a. The onsite wastewater disposal system is designed to meet the relevant requirements to secure an

Desired Outcome	*Development Control Requirements*
	approval to be issued under Section 68 of the *Local Government Act 1993*.
1.3 All development applications demonstrate that appropriate connection to Council's sewer system or alternative on-site disposal system may be provided to service the development	a. Where available, new lots created by subdivision and any new development are to be connected to Council's reticulated sewer network. Where connection to the sewer system is not available, suitable on-site effluent disposal provisions are to be provided. b. Where an on-site sewage/wastewater system is required; the information, design and application is provided and submitted in accordance with the requirements of this section, for Council consideration and approval.
1.4 On-site sewage management systems must: 1. prevent the spread of disease; 2. prevent the spread of foul odours 3. prevent the contamination of water; 4. prevent degradation of soil and vegetation; 5. discourage insects and vermin; 6. ensure that persons do not come into contact with untreated sewage or effluent (whether partially treated or not) in their ordinary activities on the premises; 7. facilitate the re-use of resources; 8. minimise any adverse impacts on the amenity of the land on which it is installed or constructed and other land in the vicinity of that land; and 9. are sized to accommodate the expected loads.	a. For a development application for a new building or other application for a whole new system install, an On-site Sewage Management Assessment Report is to be submitted with the application that: 1. Is prepared by a suitably qualified and experienced wastewater consultant; 2. Complies with the relevant requirements of: I. AS/NSZ 1547:2012 – On-site Domestic Wastewater Management; and II. Onsite Wastewater Management Guidelines April 2025. 3. Includes a drainage concept plan showing the disposal area; and 4. Includes a site and soil analysis to inform the design of the disposal area. b. For applications involving upgrades to existing OSMS's (eg. increase in the number of people or due to failure), consult with Council for the need for an On-site Sewage Management Assessment Report or other requirements
1.5 The development demonstrates that the on-site sewage and wastewater treatment and management site is suitable for wastewater disposal system. That the area is sufficiently removed from sensitive site characteristics and features in accordance with the adjoining Table E.11.	**Table E.11 – OSMS site separations & restrictions**
	>100m — Waterbody, waterway or wetland
	>250m — Water supply well or bore
	>40m — Dam, or intermittent watercourse
	Not on slopes steeper than 1 in 8 (12% grade)
	Not where the treatment facility (i.e septic tank) is below the 1% AEP flood planning level.
	Not where the disposal area is below the 5% AEP flood planning level.
	Not on soils with permeability greater than 3.5m per day.
	Not within one (1) metre depth of the seasonally high water table or bedrock

Desired Outcome	*Development Control Requirements*
	Not where a reserve irrigation area is not available for emergency use.
	Note: Pump-out systems are not acceptable for sewage disposal.
1.6 The design capacity of any and all individual treatment system is sized to meet the capacity and needs of the individual development.	a. The maximum loading on individual treatment system is 2,000 litres per day (equivalent to usage by 10 persons) and the system includes: i. Primary treatment (size according to approved manufacturer's specification); II. Sand filtration or equivalent porous material; III. A pressurised distribution network; IV. Sub-surface irrigation; V. Has a wet weather storage capacity; and VI. Soils underlying irrigation areas have a permeability rate of less than 3.5m/per day.
1.7 In the instance of Strata and Community Title Subdivision an area is available for a communal on-site system and site conditions are suitable for such a system.	a. An on-site system area is communal and the site conditions are suitable for such a system.
1.8 A sufficient area is available for the on-site system and the site's ground and soil conditions must be suitable for the system.	a. The area extent required must be located on suitable soil conditions. b. Soils comprising mainly of sand, gravel, fractured rock of heavy clay are not generally acceptable. c. The area shall be non-trafficable to prevent soil compaction.
1.9 Any proposed greywater diversion systems or greywater treatment systems are to demonstrate that the greywater diversion system and the proposed application and use of diverted greywater, meet the relevant requirements referred to in the Kempsey OSMS Strategy.	a. The onsite greywater system is designed to meet the relevant requirements to secure an approval to be issued under Section 68 of the *Local Government Act 1993*.

KEMPSEY
Shire Council